



Public Service Bargaining Centre
260 Basden Avenue, Lyttelton
Centurion, Pretoria, 0157

P.O. Box 3123
Lyttelton South, 0176

Tel: +27 (0)12 644 8100

Fax: ++27 (0)86 619 7884

E-mail: info@pscabc.org.za

Website: www.pscabc.org.za

All correspondence
must be addressed to the
General Secretary of Council



From Struggle to Structure: One Agreement at a Time

De Bruin, Phiri, Mdingi



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ACRONYMS

AMCU	Association of Mineworkers and Construction Union
ANC	African National Congress
ASGISA	Accelerated and Shared Growth Initiative for South Africa
BBBEE	Broad Based Black Economic Empowerment
BUSA	Business Unity South Africa
CCMA	Commission for Conciliation, Mediation and Arbitration
CEO	Chief Executive Officer
CWP	Community Work Programme
CGE	Commission for Gender Equality
CIS	Competitiveness Improvement Services
COIDA	Compensation for Occupational Injuries and Diseases Act
COSATU	Congress of South African Trade union
CVPs	Constitutional Values and Principles
DPSA	Department of Public Service and Administration
GEAR	Growth, Employment, and Redistribution
GEMS	Government Employees Medical Scheme
GEPF	Government Employee Pension Fund
ILO	International Labour Organization
LRA	Labour Relations Act
MECs	Members of Executive Committees
MTSF	Medium-term Strategic Framework

NAPTOSA	National Professional Teachers' Organisation of South Africa
NDP	National Development Plan
NEDLAC	National Economic Development and Labour Council
NEHAWU	National Education Health Allied Workers Union
NUM	National Union of Mineworkers
PFMA	Public Finance Management Act
POLMED	
POPCRU	Police and Prisons Civil Rights Union
PSA	Public Service Association
PSC	Public Service Commission
PSCBC	Public Service Coordinating Bargaining Council
RDP	Reconstruction and Development Programme (RDP)
RSA	Republic of South Africa
SADTU	South African Democratic Teachers Union
SAPU	South African Police Union
SETA	Sectoral Education and Training Authorities
SDA	Skills Development Act
SDLA	Skills Development Levies Act
WTPSD	White Paper on the Transformation of Public Service Delivery
WTPS	White Paper on the Transformation of the Public Service



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Ms Thandekile Sindane *Image Sourcing*

Mr Lerato Dimo *Design & Layout*

AUTHORS



Mr Frikkie De Bruin
General Secretary of the PSCBC

A seasoned Labour relations expert who has led the PSCBC as the General Secretary for more than 15 years.



Christopher Phiri PhD:
Senior Manager Strategic Planning Monitoring and Evaluation & Research.

An expert in Planning, Monitoring, Evaluation & Research in the PSCBC, an author and publisher of 3 books with over 18 years of experience in the field.



Mr Mbuso Mdingi Senior officer
Strategic Planning Monitoring and Evaluation & Research

A senior researcher with more than 10 years' experience and expertise in strategic planning Monitoring, Evaluation in the PSCBC.



REVISTING THE
APARTHEID
LABOUR
RELATIONS

1

Chapter 1

REVISTING THE APARTHEID LABOUR RELATIONS

Introduction



European labourers brought the ideas of British trade unionism and its tenets "safe working conditions, protective labour laws, and fundamental worker protections" to South African labourers (McGregor, 2012). The arrival of employees from abroad resulted in the establishment of the first trade union on 22 December 1881 (Nel, 2012). This early union's primary goal was to protect its members' status (Finnemore, 2006). The Durban Typographical Society was established in 1886 and was

the first locally formed union in South Africa. The South African Typographical Union, which was later formed in 1898 after it merged with other comparable unions, was South Africa's first legitimate national trade union (Nel, 2012). With a focus on organizing the skilled workers.

The Industrial Workers of Africa, the first trade union to specifically organize Black workers, was formed in 1917 (Van de Walt, 2004). Later, in 1920, this union united with the Industrial and Commercial Workers' Union of Africa. Members of the combined union came from a wide range of industries, including factories, farms, retail, education, harbours, and domestic services (Gioliomee & Mbenga, 2007).

However, the significance of trade unionism did not emerge until the turn of the 20th century, when white mine workers, the majority of whom were British, organized into powerful bargaining units to defend their jobs (Suchard, 1982). First, the unions used their economic and political clout to combat Chinese contract labour imports, and then they used it to stop black infiltration. By the end of 1911, they had succeeded in establishing the custom and legal basis for the idea that white jobs should be protected from black competition. Black labourers, on the other hand, lacked the necessary understanding of labour organization to effectively organize themselves into

bargaining units. Black labourers filed complaints with inspectors that the Governor General appointed (Suchard, 1982).

In order to maintain the colour bar, gold miners went on strike in January 1922, which resulted in the violence known as the Rand Rebellion. The phrase “colour bar” describes policies, practices, and laws that prevent Black workers from entering high-skilled jobs (Suchard, 1982). Black labourers and police stations were attacked during the Rand Rebellion, and military forces were dispatched to put an end to the unrest and restore order. The government responded with the Industrial Conciliation Act No 11 of 1924. The Industrial Conciliation Act No. 11 of 1924 arose primarily in response to the labour unrest in South Africa, particularly the 1922 Rand Rebellion (Bendix, 2000; Webster, 2001).

The Industrial Conciliation Act No 11 of 1924

Unions were not obliged to register prior to 1924. The Industrial Conciliation Act, which was passed in 1924, established the mechanisms for worker and employer organization registration as well as for the discussion and resolution of labour-employer disputes. It was necessary for employers’ groups and trade unions to submit registration applications. A Registrar of Trade Unions and Employers’ Organizations was appointed by the Governor General. Either registration would be approved or denied by the Registrar.

Trade unions that were legally recognized only had white employees as members, and the majority of Black workers did not fit the definition of an “employee,” they were not allowed to join. Therefore, the Act’s definition of “employee” served as a legal tool to bar Black people from engaging in the formal

collective bargaining process. But it’s crucial to remember that unregistered unions weren’t seen as unlawful. Provisions for conciliation boards and industrial councils were included in the Act. Employers’ groups and trade unions had the option to establish the voluntary Industrial Council in order to negotiate on any issue of shared interest, such as work hours, pay scales, leave policies, etc. For particular sectors and industries, councils with an equal number of employer and employee representatives could be formed.

Regular discussions and the chance to resolve issues before they became conflicts and labour unrest were made possible by the council for both employers and employees. Before a strike or lockout could be declared, industrial councils were required to examine and report on the matter of a dispute. They had to make an effort to avoid arguments and resolve those that had already occurred. The minister received copies of a memorandum outlining the terms of a dispute settlement, and agreements were published in the Government Gazette. Temporary organizations known as conciliation boards were established to hear particular cases. If there was no industrial council for a particular industry, employees, employers, trade unions, or employers’ organizations could refer a dispute to a conciliation board with the express intent of resolving it. Similar to industrial councils, the minister received copies of memoranda outlining the terms of a dispute settlement, and agreements were published in the Government Gazette. The minister may choose to appoint a mediator during the negotiations, either at his own discretion or in response to requests from both sides of any disagreement. The mediator made an effort to resolve the conflict, and he gave the minister a direct report on the mediation’s outcomes.

The Industrial Conciliation Act was followed when conducting arbitration. Arbitration was used after mediation or as an alternative to it. An industrial councillor conciliation board could decide to refer a dispute to arbitration by a single arbitrator or by an even number of arbitrators and an umpire, who would decide in case of a disagreement between arbitrators, if a majority of employer and employee representatives represented the board. Either the minister, the board, or the council appointed the arbitrator and arbitrators. Lock-outs were forbidden in any essential industry, and arbitration was required in cases involving strikes and essential services.

Copies of any settlements reached by an industrial council in the event of a dispute were forwarded to the minister and published in the Government Gazette. In the event that a settlement could not be reached, the matter was referred to arbitration, mediation, or the minister and was once more published in the Gazette. The conciliation board process followed the same protocol. The majority of black workers were excluded from the industrial council system because they were unable to join legally recognized trade unions, despite being represented on these councils and unable to engage in collective bargaining to negotiate pay and working conditions.

Nonetheless, they were given some protection in the form of the minister's authority to unilaterally set wages and working conditions based on the advice of a Wage Board that was set up under the Wage Act of 1925. It had three members that the Governor General had selected. The Wage Board had the effect of maintaining artificially high wages. Due to unemployed White workers, women, and minors landing jobs, this resulted in unemployment for Black people. This was not always the case, though, as employers still favoured hiring Black people for these

jobs because the job categories were so lowly that White people avoided them (Suchard, 1982).

Amendments from the Industrial Conciliation Act 11 of 1924 to the Industrial Conciliation Act 36 of 1937

The Industrial Conciliation Act 11 of 1924 was repealed by Act 36 of 1937 which was considerably more comprehensive than its predecessor and was the result of the Industrial Legislation Commission of 1935. The Act set out the matters that might be dealt with by industrial council agreements, procedures for meetings and numbers of industrial councils, the summoning and examination of witnesses by the industrial council or committee, and it was more comprehensive regarding arbitration procedures. Federations of employers' organisations or trade unions were now allowed to be registered.

The 1937 Act maintained and, in certain instances, broadened the exclusion of black workers from the framework of industrial relations. Black workers were already primarily prohibited from joining trade unions and industrial councils under the 1924 Act. The 1937 amendments strengthened the legal framework that forbade black workers from participating in official collective bargaining or being represented in industrial councils, thus further entrenching these exclusions. The 1937 Act's modifications improved the formal frameworks for collective bargaining, but they were mainly designed with white workers in mind. The Act gave white workers easier access to collective bargaining procedures while maintaining the exclusion of black workers from such procedures. It also provided more specific procedures for the establishment and functioning of industrial councils.

The 1937 Act provided more robust regulations and recognition criteria for trade unions. However, these changes primarily benefited trade unions composed of white workers. It required trade unions to undergo a formal registration process to be legally recognized. This process involved submitting detailed information about the union's membership, structure, and objectives to the Registrar of Trade Unions. Only registered trade unions could engage in collective bargaining and participate in industrial councils.

It specified that trade unions could only represent workers within certain racial categories, explicitly excluding black workers from membership in registered unions. This racial criterion ensured that recognized trade unions remained predominantly or exclusively white. Registered trade unions were granted the right to participate in industrial councils, which were pivotal in collective bargaining and dispute resolution. These councils had the authority to negotiate wages, working conditions, and other employment terms on behalf of their members. However, since black trade unions were not recognized, black workers were excluded from these critical negotiations.

The 1937 Act made the processes for conciliation and arbitration more structured and formal. The Act introduced clearer procedures and roles for industrial councils in resolving disputes. However, since black workers were excluded from participating in industrial councils, these enhanced dispute resolution mechanisms were effectively off-limits to them, serving only the interests of white workers and their employers.

Despite these advancements, the 1937 Act perpetuated the exclusion of black trade unions. Black workers were systematically denied the right to form legally recognized trade unions,

meaning they could not benefit from the formal protections and bargaining power afforded to their white counterparts. This exclusion maintained a significant disparity in labour rights and protections, reinforcing racial segregation and inequality within the South African labour market. The exclusion from recognized trade unions and industrial councils meant that black workers had no formal representation in negotiations over wages, working conditions, and other employment matters. Without access to the conciliation and arbitration processes established by the Act, black workers had limited recourse in labour disputes, leaving them more vulnerable to exploitation and unfair treatment. The differential treatment in labour law protections entrenched economic and social inequalities, as black workers were denied the same legal rights and support structures available to white workers (Budeli, 2012).

Suppression of Communism Act No 44 of 1950

The Suppression of Communism Act No. 44 of 1950, while targeting communism, had a harsh impact on black workers in South Africa in a few ways. The Act's broad definition of communism as anything promoting racial disharmony or change through unlawful means, made it easy to label Black activism as communist. This effectively silenced Black workers who wanted to fight for better working conditions and equal rights (Giliomee & Mbenga, 2007).

The Act targeted organizations like the African National Congress (ANC) which advocated for racial equality. This made it difficult for Black workers to organize and fight against the discriminatory apartheid system that severely limited their opportunities. Fearing persecution under the Act, Black resistance movements were forced to operate underground. This limited their

effectiveness and made Black workers more vulnerable to infiltration and disruption by the government.

Black workers were already facing harsh realities under apartheid, including low wages, poor working conditions, and limited bargaining power. The Act further restricted their ability to fight for improvements. Some Black workers genuinely believe that communist ideology offered a path to racial and economic equality. The Act made it difficult to distinguish between legitimate communist beliefs and Black activism. The suppression of Communism Act was a powerful tool used by the apartheid government to silence dissent and maintain racial inequality. Black workers were significantly impacted by this Act, as it limited their ability to fight for a better future (Braam, 2017).

Native Labour (Settlement of Dispute) Act of 1953

Whereas blacks were not accommodated in regional, industrywide bargaining (the industrial council and conciliation board system) an attempt was made in 1953 to accommodate them in so far as statutory plant bargaining was concerned (McGregor, 2012). In terms of the Native Labour (Settlement of Disputes) Act, No 48 of 1953, regional committees were formed, consisting of blacks appointed by the minister to represent the interests of blacks in the area.

They functioned under the chairmanship of a black labour officer appointed by the minister. They had to maintain contact with workers in their areas, keep themselves informed about conditions of employment and assist with the prevention and settlement of disputes. A works committee, consisting of between 3 and 5 members, could be elected in any establishment where 20 or more black workers were employed. The works

committee served as a link between employers and the regional committee. The Act allowed the formation of the Central Native Labour Board.

The Central Native Labour Board consisted of a chairman, appointed by the minister, and other members appointed by the minister after consultation with the regional committee. The board coordinated all the activities of the regional committees and was represented at all wage negotiations. The board reported to the minister as to whether or not it was in agreement with negotiated conditions of employment. If it was not in favour, the matter could be referred to the Wage Board for determination, and the conditions of employment determined by the Wage Board could be made binding on the employers concerned.

The 1953 system was offered as a substitute for black trade unionism and bargaining and negotiation for blacks were only conducted on the level of the individual firm. When a dispute occurred in an establishment, or section of an establishment, the employer concerned notified the inspector.

In 1953 strikes involving black workers were outlawed under all circumstances. Blacks could, however, form and join unregistered trade unions. The first mass black union to emerge was the Industrial and Commercial Workers Union in the late twenties, and this was followed in the thirties by some industrial unions. During the forties black unionism grew significantly and a Council of Non-European Trade Unions was formed. During the fifties federations of industrial unions were formed. Thus, as time went by, unregistered trade unions grew in membership, and while they could not be registered, some were unofficially recognised by employers. They did not have any of the duties, obligations and controls of recognised unions, could affiliate

with political parties and in certain cases they received moral and financial support from communist sources (Cameron, 2022).

The 1956 Amendment of Industrial Conciliation Act

The Industrial Conciliation Amendment Act of 1956 further entrenched the apartheid regime's segregationist policies within the realm of labour relations. This amendment to the Industrial Conciliation Act No. 36 of 1937 served as a legal instrument to reinforce and expand the racial discrimination and inequality that characterised the apartheid system's approach to employment and labour organization.

The amendment introduced several notable changes that systematically disadvantaged non-white workers and trade unions, while solidifying the dominance of the white minority in the labour sector. One of the most significant changes was the enforced racial segregation of trade unions, making it mandatory for unions to be organised along racial lines. White workers had their own unions, while Black, Coloured, and Indian workers were required to form separate unions, significantly weakening their collective bargaining power and fragmenting the labour movement along racial lines.

The restructuring of industrial councils and conciliation boards further marginalized the participation and influence of non-white workers in these crucial bodies responsible for resolving industrial disputes and negotiating labour conditions. The amendment introduced provisions that limited the employment opportunities and dispute resolution mechanisms for non-white workers, ensuring that they operated within a framework that perpetuated racial inequality and discrimination.

Furthermore, the amendment reinforced the policy of job reservation, which reserved certain jobs exclusively for white workers, effectively barring non-white workers from accessing skilled and higher-paying positions. This policy was a cornerstone of the apartheid labour system, ensuring that economic opportunities and upward mobility were severely restricted for the non-white majority.

Bantu Labour Act No. 67 of 1964



During the apartheid era in South Africa, a series of laws were enacted to enforce racial segregation and the subjugation of non-white populations. The Bantu Labour Act was one of these laws aimed at institutionalizing the apartheid regime's labour policies. The Act established labour bureaus responsible for recruiting and placing Black labourers in employment (Worden 1994). These bureaus were state-run and had the authority to allocate labour to employers, ensuring a controlled supply of

labour to various sectors, particularly in mining, agriculture, and industry.

The Act reinforced influx control measures, which were designed to regulate the movement of Black people into urban areas. Black South Africans needed permits to live and work in urban areas, and the labour bureaus played a central role in issuing these permits. It reinforced the pass system, requiring Black labourers to carry passbooks (dompas) that documented their employment status, employer details, and authorization to be in specific areas. Failure to produce a passbook on demand could result in arrest and detention (Budeli, 2012).

The Act mandated that employment contracts for Black labourers be registered with the labour bureaus. This allowed the government to monitor and control the conditions under which Black South Africans were employed, including wages, duration of employment, and working conditions. It included provisions aimed at regulating working conditions, although these were often biased in favour of employers and did not significantly protect the rights of Black workers. The focus was primarily on ensuring a steady and controlled supply of cheap labour.

The Act imposed severe penalties for violations, including for those who employed Black workers without proper authorization or for labourers who failed to comply with the pass laws. Enforcement was stringent, with regular police raids and inspections.

Black Labour relations regulations Amendment Act 84 of 1977



In the 1970s, South Africa faced increasing internal resistance to apartheid, including growing labour unrest among Black workers. Strikes and labour disputes highlighted the inadequacies and injustices of the existing labour relations system. The government responded with legislation to tighten control over labour relations, aiming to suppress dissent and maintain economic stability. The Black Labour Relations Regulation Amendment Act No. 84 of 1977 imposed strict controls on the formation, registration, and operation of trade unions representing Black workers. It aimed to limit the ability of these unions to organize effectively and challenge employers or the state.

The Act established specific mechanisms for resolving labour disputes involving Black workers. These mechanisms were designed to minimize industrial action, such as strikes, and to channel disputes through controlled and often biased processes.

It imposed severe restrictions on the right to strike. Black workers were required to follow stringent procedures before initiating any industrial action, and unauthorized strikes were met with harsh penalties, including dismissal, fines, and imprisonment. The Act outlined procedures for collective bargaining, but these were heavily regulated and favoured employers. The state had significant powers to intervene in bargaining processes, further limiting the negotiating power of Black workers.

The Act facilitated the creation of Industrial Councils, which were forums for negotiation between employers and employees. However, these councils often lacked genuine representation for Black workers and were used to enforce government policies. The government retained substantial oversight over labour relations, with the power to influence and control union activities, dispute resolutions, and bargaining outcomes. This ensured that labour relations remained under state control and aligned with apartheid policies (Budeli, 2012).

The Act significantly curtailed the rights of Black workers to organize, strike, and bargain collectively. This suppression was intended to maintain the apartheid regime's control over the labour force and prevent disruptions to the economy. By centralizing control over labour relations, the Act allowed the government to monitor and manage labour unrest more effectively. This control extended to the activities of trade unions, limiting their ability to act independently. The restrictions imposed by the Act ensured a steady and compliant labour force for industries, particularly mining and manufacturing. This exploitation was a cornerstone of the apartheid economy, where cheap Black labour was essential to maintaining economic profitability.

The Industrial Conciliation Amendment Act 94 of 1979

One of the most significant aspects of this act was the recognition of black trade unions for the first time in South Africa. Prior to this amendment, black workers were not allowed to join registered trade unions, and their unions were not officially recognized by the government.

Black workers were no longer excluded from the Industrial Conciliation Act. This allowed them to form and register trade unions that could participate in collective bargaining with employers under the Act's framework. While not explicitly prohibiting segregated unions, the Act paved the way for more inclusive ones. Black workers could now join previously exclusive unions, promoting greater worker solidarity across racial lines.

The act established the Industrial Court. This independent body offered a crucial reform. It handled dispute resolution related to labour issues like unfair dismissals, wage disagreements, and the legality of strikes. Previously, such matters were settled through a potentially biased bureaucratic system.

Conclusion

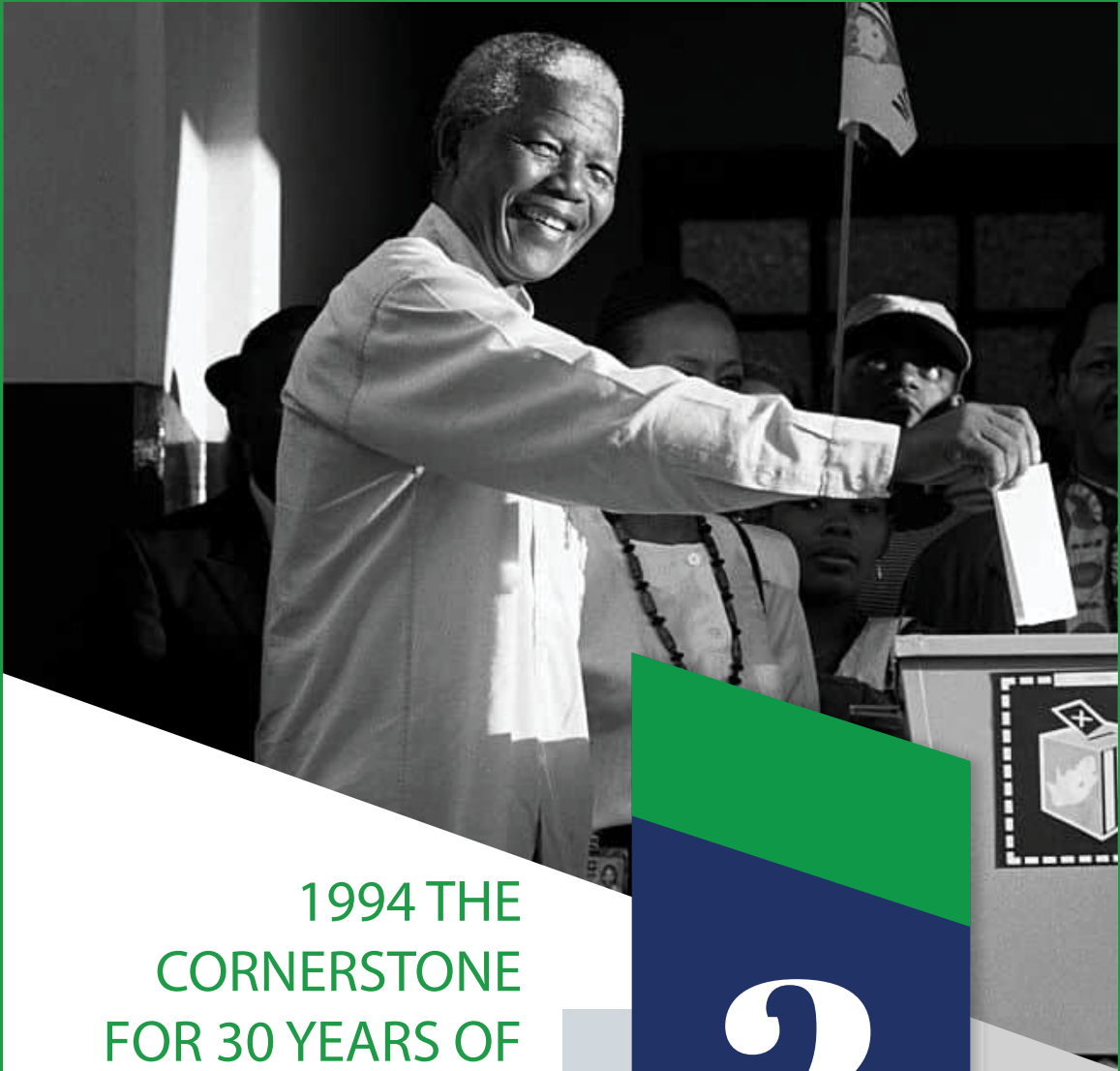
The history of labour laws and trade unions in South Africa is deeply intertwined with the country's broader struggle against racial oppression and inequality under apartheid. The various acts and amendments discussed in this chapter demonstrate how the apartheid government systematically used labour legislation to entrench racial segregation, subjugate Black workers, and maintain White minority control over the labour force.



From the Industrial Conciliation Acts of the early 20th century to the draconian measures of the Bantu Labour Act and the Black Labour Relations Regulation Amendment Act, the legal framework surrounding labour relations was designed to limit the rights and bargaining power of Black workers. These laws excluded Black workers from registered trade unions, denied them representation in collective bargaining processes, and imposed severe restrictions on their ability to strike and organize.

However, despite the oppressive nature of these laws, Black workers and their allies in the trade union movement exhibited remarkable resilience and determination in their pursuit of labour rights and racial equality. The formation of unregistered trade unions, the growth of worker solidarity across racial lines, and the eventual recognition of Black trade unions in the late 1970s laid the foundations for the dismantling of the apartheid labour system.

The trajectory of labour laws in South Africa reflects the broader struggle for human rights and social justice. It serves as a reminder of the immense sacrifices made by generations of workers who risked everything to challenge an unjust system.

A black and white photograph of Nelson Mandela, smiling and casting a ballot into a box. He is wearing a light-colored shirt. In the background, other people are visible, some looking on. The scene is set outdoors, possibly at a polling station.

1994 THE
CORNERSTONE
FOR 30 YEARS OF
DEMOCRATIC
LABOUR
RELATIONS

2

Chapter 2

1994 THE CORNERSTONE FOR 30 YEARS OF DEMOCRATIC LABOUR RELATIONS

Introduction

The South African public service has been undergoing fundamental transformation. Following the dismantling of the apartheid public service in 1994, the new government had to build a democratic, inclusive and responsive public service. The last three decades therefore witnessed the most dramatic shifts in public service reform. Not only did the architects of the new South Africa manage to forge a relatively stable transition from a ruthless apartheid system to an inclusive, democratic state, but this miracle of political transition was also accompanied by a systematic transformation of all institutions, agencies and organs of state. Forming the bedrock of this transformation was the public service (Cameron, 2022).

The transformation of the public service became increasingly linked to the broader project of nation-building. The new government's agenda of reconstructing and developing a democratic state therefore depended on the willingness, capability and patriotism of the public service. In creating such a public service, the state had to embark on a cautious rationalisation process.

This review provides a brief history of the South African public service, with its colonial and apartheid roots. It dates back to the formation of the Union of South Africa in 1910. As Miller (2005:

52) observed, the focus of the South African government of 1924 was on using the public service as a sector to provide employment for the particular race (whites only).

The years leading to the ascendance of the National Party into power and the subsequent institutionalisation of the apartheid system from 1948 onwards, witnessed a growing trend in the use of the public service as a vehicle for uplifting the socio-economic condition of the white minority, the poor, white Afrikaners – the electoral support base of the National Party. There was a deliberate strategy to use public-sector employment as a tool for white employment.

The apartheid public service was geared towards serving the needs of the white minority group, and in the process, all black people were marginalised. The apartheid government's racist and sexist policies were enforced through a brutal and authoritarian form of governance. In all apartheid public administrations, corruption and maladministration were rampant. This was compounded by the prevalence of an organisational culture and ethos based on non-transparency and non-participation. During the apartheid era, public servants were "held accountable for adherence to rules and procedures, rather than for service delivery outcomes" (Casale, and Tenkorang, 2008).



As the apartheid public administrations were not developmental in nature, the most pressing task for the post-apartheid state was to create a unified public service with a developmental orientation. Given the history of uneven development characterised by a lack of basic services

The state's success in providing most South Africans with basic services is understood to be the result of a number of factors. These include the existence of a body of extensive development-oriented legislation and policy frameworks. Flowing from the Constitution of the Republic of South Africa (1996), for instance, are the principles of transparency, accountability and a citizen-oriented service. The public servant is therefore mandated by the Constitution to provide basic services that are critical for the realisation of the nation's socio-economic rights.

Labour relations at the dawn of democracy



As a response to the skills crisis, government was at times compelled to enrol large numbers of public servants for short-term courses. With the advantage of hindsight, it is now apparent that such quick fixes to human resource development are not effective.

In 2009, the Department of Public Service and Administration (DPSA) formulated a human resource development strategic framework that attempted to move towards a more sustained approach to skills development and training (Ferreira, 2010; Ferreira, 2005).

This review of the in the public and private sector in South Africa is anchored in an appreciation of the achievements of, and the challenges faced by the national and provincial spheres of government in the last two decades in realising their developmental mandates.

As Miller (2005: 52) observes, the South African government of 1924 “focused on using the public service as a sector to provide employment for the whites”. The years leading to the ascendance of the National Party into power and the subsequent institutionalisation of the apartheid system witnessed a growing trend in the use of the public service as a vehicle for uplifting the socio-economic condition of the white minority.

There was therefore a deliberate strategy to use public-sector employment as a tool for white employment. The triumph of Afrikaner nationalism in 1948 also saw a gradual marginalisation of English-speaking white South Africans in the public service. Miller (2005: 53) points out the following:

“The South African government since 1948 to the 1980s purposefully appointed Afrikaners to the public sector and in

particular to senior positions. The transformation of the public service was almost complete by the 1980s with over 80% of the public service being Afrikaners to such an extent that it was surprising to hear English being spoken in the halls of government. By 1980, over 40% of Afrikaners in South Africa were employed in the public service and parastatals. Thus, the Afrikaner dominated public service had a direct interest in preserving the apartheid status quo”.

This dominance of male Afrikaners in the public service and the absence of representation of other population groups or females had a direct bearing on future attempts to democratise the public service especially after 1994. The apartheid public service became the nerve-centre for implementing and enforcing apartheid laws and ideology (Ferreira, 2010; Ferreira, 2005).

As such, the project of dismantling and subsequently reforming this highly racialised apartheid public service has proved to be arduous and complex. In reviewing changes in the public service, it must be noted that the government that came to power in 1994 inherited a public service whose organisational culture, identity and ethos were deeply entrenched in strong Afrikaner nationalism and racial segregation. Apart from issues of organisational culture and ethos, a plethora of policies and legislation also existed that was geared towards the maintenance of the apartheid system. It thus became imperative for the post-apartheid government to embark on a decisive democratisation project, the objective of which was to change not only the racial composition of the public service, but also its legislative framework and organisational culture.

The project of reforming the public service therefore had to be multipronged, systematic and cautious, yet decisive. What has

taken place in the last 20 years is therefore the radical transformation of the public service into one that is representative of the population through the employment of a suite of policies geared towards affirmative action. Affirmative action was necessitated by a pressing need a new public service with an equitable racial and gender composition. Without delving into a discussion on the influence of various paradigms (such as the New Public Management, for instance) and their influence on the changes in the post-apartheid public service, it is clear that the radical process of using the public service from 1948 to the 1980s to empower the minority white Afrikaner population was to be matched by an equally rigorous transformation agenda from 1994 onwards to arrive at a South African public service that was representative of the country's demographic profile (Ferreira, 2010; Ferreira, 2005).

In reviewing the changes in the public service, the issue of homelands and self-governing territories is worth mentioning. The homelands and self-governing territories, which, according to apartheid thinking, were supposed to run their affairs independently of white South Africa, had their own public administrations that were in need of transformation. It is obvious that the organisational culture, identity, remuneration frameworks and legislation governing the 10 homelands were different (Public Service Commission, 2005). In the year preceding the democratic elections, approximately 1 187 600 public servants were employed in the public service of South Africa and the ten Bantustans (Public Service Commission, 2005: 5; Miller, 2005: 55). The amalgamation of these separate “states” into one nation, as well as the rationalisation of these disparate public administrations into one national public service proved to be an onerous task for the post-apartheid dispensation.

The dynamics of transition and the evolution of the post-apartheid public service

The salience of public sector reform was apparent to all involved in the negotiation of a democratic South African state. The Interim Constitution of the Republic of South Africa (RSA) for instance made provisions for the following (RSA, 1994):

“An efficient, non-partisan, career-oriented public service broadly representative of the South African community, functioning on a basis to serve all members of the public in an unbiased and impartial manner, and shall, in the exercise of its power and in compliance with its duties, loyally execute the lawful policies of the government of the day in the performance of its administrative functions.”

Such a bold endorsement of a democratic and accountable public service was an attempted break away from the apartheid public service. Chapter 10 of the Constitution (1996) also set out the key principles of a democratic, transparent and accountable public service. These principles included the following:

- a) The maintenance of a high standard of professional ethics
- b) The promotion of efficient, economic and effective use of resources
- c) The promotion of a development-oriented public administration
- d) The provision of services to the citizens in an impartial, fair and equitable manner.

The responsiveness of the public service to all citizens. The establishment and promotion of a public administration representative of the broader South African population. These values and principles which were to guide the post-apartheid public service, were geared towards creating a break from the elitist, racialised and aloof apartheid public service. All efforts made by government to promote equity, professionalism and good governance, emanate from the Constitution.

The post-apartheid state was faced with the dual task of firstly transforming the public service into a democratic structure and secondly improving the public service's capacity to play a developmental and transformative role. These twin processes of transformation and democratisation of the public service took place at a time when the future of the new South African state was yet to be fully charted. In other words, new state institutions and related democratic structures were being crafted in a politically charged environment where the previous perpetrators of apartheid and those who had been victimised all had to form part of a unified democratic state. While the early 1990s marked the dawn of a new era for South Africa, it was also a time of political tension, compromise and, in some instances, violence.

The legislative framework informing public service transformation

Chapter 10 of the Constitution of the Republic of South Africa (1996) outlines the principles guiding public sector reform and transparency. The emphasis is on accountability, good governance, representivity and professionalism. As will be seen later, these key attributes enshrined in the Constitution vis-à-vis the public service continued to inform the work of various institutions and departments responsible for the public service.

As the agenda of public service transformation is not an event, but a process, there are some issues related to policy implementation that cannot be achieved instantly. The objective of the transformation agenda is to change the structure, organisational culture and demographic composition of the public service; the existing legal framework ought to be aligned with the capacity of state institutions to effect meaningful change. Cognisant of this fact, the post-apartheid state has endeavoured to align its objective of public sector reform with that of strengthening state institutions. As such, the PSC's watchdog role in the public service is premised on an attempt to ensure that the transformation agenda is not derailed.

In addition to the Constitution, the Public Service Act of 1994, the White Paper on the Transformation of the Public Service (WTPS) of 1995, the White Paper on the Transformation of Public Service Delivery (WTPSD) of 1997 (the Batho Pele principles), the Public Service Regulations of 1999, the Public Finance Management Act (PFMA) of 1999 and the Promotion of Administrative Justice Act of 2000 guide the activities of the public service. This body of policy, legislation and regulations was geared towards changing the structure, racial and gender composition, as well as the organisational culture of the public service. In all the aforementioned documents and legislation, the emphasis was on the rationalisation of the public service with the aim of creating a professional, transparent and accountable public service that would best serve the interests and needs of all citizens.

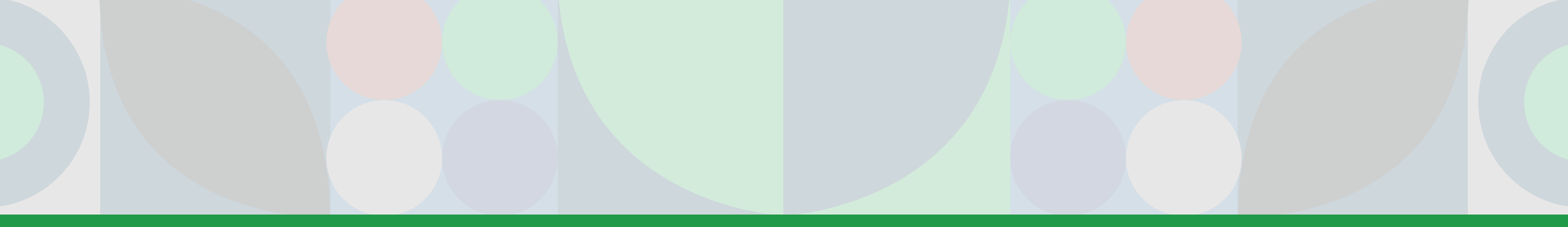
The adoption of the Batho Pele (People First) principles in the public service, for instance, was aimed at the transformation of the organisational culture and the attitudes of public servants towards citizens. Given the legacy of apartheid, there was a

need for the transformation agenda to change the public's perception of the state, and vice versa.

Underpinning the Batho Pele approach to public management and governance is the centrality of the twin processes of public consultation and accountability. In 2006, the significance of a range of public consultation platforms in shaping the discourse on, and the practice of public service reform were adopted. Staying true to the democratic principles of building consensus through deliberative action, the post-apartheid government has embarked on a number of izimbizo/lekgotlas, with the aim of promoting public participation in policymaking (Gentle, Callinicos, Jansen, Nieftagodien, and Jordi, 2018).

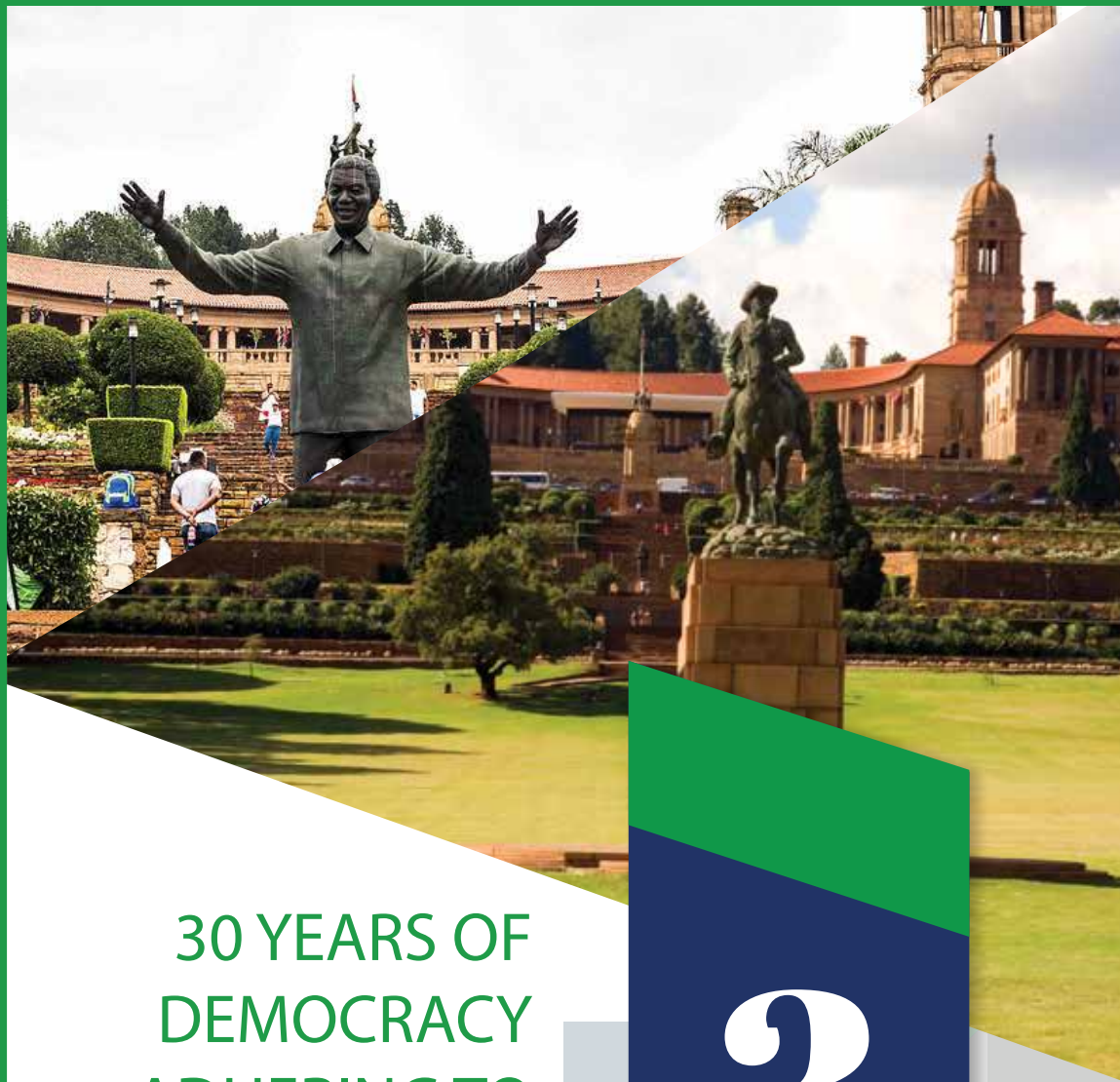
The PFMA and other policies geared towards sound financial management and accountability continue to shape the work ethic and organisational culture of the public service. One of the underlying objectives of the PFMA is to ensure the maintenance of an effective, efficient, fair and transparent financial management and auditing system. In many ways, the PFMA has been at the centre of public finance transformation. The emphasis on sound financial management has proved to have played a transformative role in the public service. For one, financial transparency and accountability have enabled citizens to hold public servants and the state accountable. The PFMA has played an important role in promoting fiscal discipline within the public service, thus identifying and curbing corruption and financial mismanagement.

Another change in public service financial management and budgetary processes was brought forth by the Medium-term Strategic Framework (MTSF). The MTSF is a "focused set of medium-term strategic priorities that are shared by all spheres



of government and inform planning, budgeting and implementation. It links policy priorities, planning and budgeting for government as a whole (Department of Public Service and Administration, 2003: 45). As a planning tool, the MTSF seeks to link key policies and priorities across the public service. It also enhances strategic medium-term prioritisation. This planning tool is important, as it ensures that planning decisions made by Cabinet are implemented nationally. The MTSF also informs the preparation of the Medium-term Expenditure Framework (MTEF).

The legislative framework outlined above continues to form the bedrock of public service accountability, transparency and good governance. The existence of such a sound legislative framework also attests to the efficiency and autonomy of state institutions and structures geared towards promoting democratic values, notably the judiciary and other executive structures responsible for policy formulation. Sound policies and legislation create a predictable and enabling environment, not only for business, but also for all stakeholders in development to invest varied forms of capital. Strategic policy formulation therefore forms part of the public sector's innovation systems (Twenty-year review South Africa 1994 – 2014).



30 YEARS OF
DEMOCRACY
ADHERING TO
THE RULES OF
THE GAME

3

Chapter 3

30 YEARS OF LABOUR RELATIONS ADHERING TO THE RULES OF THE GAME

Introduction

The International Labour Organization (ILO) has at its heart, the tripartism and international labour standards. The tripartism, standards are legitimate, as they are developed and administered by governments, employers and workers. Tripartism and the universality of standards give rise, to the diversity of interests and flexibility reflecting differences in national situations.

While legal systems change, societies, including institutions, and technologies, also are bound to evolve and adapt based on the current economic and social changes. In such cases it is important to appreciate the emergence and development of new concepts, frameworks and models which influence the future of international labour standards.

For ILO this exacerbated to the introduction of decent work and the integrated approach to standards (International Labour Organisation, 2019). The ILO conventions and recommendations have been revised over the years since the nineteenth century.

The twenty first century has seen countries guided by these conventions including in South Africa since 1994. The ILO instruments have been not just a disparate collection of Conventions and Recommendations. It has been and continue

to be important standards covering most of the fields of labour law (Humblet, et al, 2002).

The universality of the ILO standards has been characterized by two features thus applicable in all the member States of the Organization and they possess a certain flexibility (Humbket et al, 2002).

The ILO constitution developed in (1919) affirmed the principle of freedom of association as a vehicle to improve the conditions of workers and ensuring peace. In the 1944 Declaration of Philadelphia, the ILO, affirmed that “freedom of expression and of association as essential to sustained progress”. The ILO is therefore based on these fundamental principles (International Labour Organization, 2019).

In June 1998, the Declaration on Fundamental Principles and Rights at Work was adopted to enhance these fundamental rights. Therefore, all member states, had an obligation, to respect, to promote and to realize, in good faith, the principles concerning the fundamental rights formed part of the Conventions.

The ILO key principles include freedom of association and the right to collective bargaining. The Declaration considers as

fundamental the principles of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98). and non-interference by the authorities (International Labour Organization, 2019).

This applies to workers and employers and their organizations. This provided workers and employers, the right to establish and, based on the rules of the organization concerned, to join organizations of their own choice.

Once again, the workers' and employers' organizations had the right to draw up their own constitutions and rules, to elect their representatives in full freedom, to organize their administration and activities and to formulate their programmes (International Labour Organization, 2019).

Any public authority was refrained from interfering or restrict the right or impede the lawful exercise thereof. This has been the 30 years of labour relations in South African where in the private and public sector the employers and workers have exercised their rights.

The above provisions have been applied and enforced over the 30 years of labour relations in South Africa across sectors, workers' and employers' organizations, federations and without restrictions.

Based on the ILO conventions, workers and employers were expected to exercise the rights provided for in the Convention while respecting the law of the land. The law of the land was expected to be linked and supported by these Conventions.

The enforcement of Conventions ensured that workers and employers exercise freely the right to organize. Since 1998 to

2025, the South African workers and employers in the public sector had the right to organise. This has been guided by the Right to Organise and Collective Bargaining Convention 98 of, 1949. Unlike prior to 1994, the right to organise guaranteed workers to enjoy adequate protection against Acts of anti-union discrimination in respect of their employment both in the Public and Private sectors.

The ILO emphasize about worker protection covering both members and non-members of trade unions. Over the past 30 years of labour relations in the public sector, workers' and employers' organizations have enjoyed adequate protection against any acts of interference by each other or each other's agents or members in their establishment, functioning or administration guided by the ILO conventions and the Labour Relations Act of 1995 (International Labour Organization, 2019; ILO, 2015).

This protection of workers comprises of worker protection from sickness, disease and injury. Guided by the ILO principles of national policy, South Africa as a member of the ILO was obliged to formulate, implement and periodically review a coherent national policy on occupational health services.

This led to the development and implementation of the Occupation Health and safety Act 85 of 1993 in light of Public and Private national conditions and practice and in consultation with the most representative organizations of employers and workers.

South Africa developed progressively occupational health and safety services for all workers (Public and Private sectors), and in all enterprises. The provision of such services has been adequate and appropriate to the specific risks.

The Rules of the game



The ILO laid out the rules of the game. The ILO's mandate has been to strive for a better future for all in the world of work. Since 1919, the international labour standards have attempted to promote opportunities for women and men to acquire decent and productive work in conditions of freedom, equity, security and dignity. After 30 years of labour relations, the South African workers in the Public and private sector have acquired to a larger extent decent and productive work in conditions of freedom, equity, security and dignity compared to prior 1994. This is despite the fact that this is work in progress that need to be strengthened post 2025.

The twenty first century globalized economy, international labour standards form part of an important component of the international framework for ensuring that the growth of the global economy provides benefits for all (International Labour organisation, 2019). The ILO aspires for social justice, through which every working man and woman can claim freely and on the basis of equality of opportunity their fair share of the wealth that they have helped to generate. However, more still need to be done to achieve social justice. The South African case study provides the depth and breadth of what has been done in the past 30 years and what still needs to be done post 2025.

The past 30 years of labour relations have seen successes and failures in labour relations in the public and private sector. The issues of, climate change, demographic changes, technological advancement and globalization, have affected the world of work including in South Africa. Despite the decent work agenda, inequality and injustice continue to prevail.

The contemporary world has been characterised by the deepening of inequality and South Africa has not been excluded. The distribution of wages at the individual level has been more unequal, with the widening gap between the rich and the poor.

The ILO standards have been applied to all workers in South Africa in the Public and Private sector as well as those in the formal and informal sector. The international labour standards advocate for the establishment of institutions and mechanisms that can enforce labour rights. South Africa has established such institutions that have been catalytic to enforcement of labour rights including the establishments of trade unions in the Public and private sectors.

Freedom of Association

According to the ILO (2019), while freedom of association is a fundamental right at work, unions and their members were still exposed to severe violations of their rights. In the publication on violations of trade unionists' rights (2017), the International Trade Union Confederation (ITUC) estimated that union members faced violence in 59 out of 139 countries. In the past 30 years of labour relations in South Africa unions have been able to defend the workers' rights across the Public and Private sectors based on the South African constitution and the LRA.

Labour Relations (Public Service) Convention, 1978 (No. 151)

The Labour Relations (Public Service) Convention, 1978 (No. 151), adopted by the International Labour Organization (ILO), is a critical instrument aimed at promoting collective bargaining and safeguarding the rights of public service employees. While South Africa has not ratified this convention, its principles have significantly influenced the country's labour laws, particularly the Labour Relations Act (LRA) of 1995, to align with international labour standards.

At the heart of ILO Convention 151 is the recognition of public servants' rights to freely form and join organizations without fear of interference. This principle is mirrored in Section 4 of the LRA, which guarantees employees the right to freedom of association, ensuring they can establish and join trade unions. Additionally, the convention underscores the importance of protecting public servants from dismissal or discrimination due to their union membership or activities. In South Africa, this protection is enshrined in Section 5 of the LRA, which explicitly

prohibits employers from engaging in discriminatory practices against employees for participating in union activities. Section 187 of the LRA further reinforces this by categorising dismissals based on union activities as automatically unfair, safeguarding employees from unjust termination linked to their union involvement. This has been strengthened in the public service through the Public Service Co-ordinating Bargaining Council (PSCBC).

Another fundamental aspect of ILO Convention 151 is its encouragement of voluntary negotiations between public authorities and employee organizations to determine employment conditions. This principle has been effectively incorporated into Chapter III of the LRA, which establishes comprehensive frameworks for collective bargaining. These frameworks operate through statutory councils such as the (PSCBC). Furthermore, Section 23 of the LRA provides for collective agreements that bind parties to the terms they have negotiated, reflecting the convention's emphasis on voluntary and fair bargaining practices.

The convention also highlights the necessity of procedures for resolving labour disputes, a provision embedded in Chapter IV of the LRA. South Africa's dispute resolution mechanisms are primarily facilitated by the Commission for Conciliation, Mediation, and Arbitration (CCMA) and various bargaining councils including the PSCBC, ensuring an orderly process for addressing labour conflicts. Section 135 of the LRA further strengthens this framework by mandating that disputes be referred for conciliation before escalating to arbitration or industrial action. This approach aligns with the convention's vision of fostering cooperative and efficient dispute resolution.

Moreover, ILO Convention 151 recognises the specific needs of essential services, where uninterrupted service delivery is critical. Section 213 of the LRA addresses this by defining essential services and providing for arbitration as the primary dispute resolution method in these sectors, rather than strikes. This provision ensures that essential public functions continue to operate smoothly while respecting the rights of employees in these sectors.

In the PSCBC, the fundamental rights enshrined in the LRA have been operationalised through various resolutions. Notably, PSCBC Resolution 3 of 1998 outlines dispute resolution procedures within the council, ensuring clarity and consistency in resolving disputes related to the interpretation or application of resolutions. PSCBC Resolution 8 of 1998, meanwhile, provides comprehensive provisions for trade union negotiators and officials within the PSCBC. It delineates their rights and obligations, including mechanisms for special secondments, time off for labour-related activities, and safeguards for their positions and career progression. Additionally, Resolution 11 of 2001 amends the PSCBC constitution to include the council's resolution procedures, further institutionalising its commitment to orderly and fair dispute resolution.

Over the past 30 years of labour relations, the South African public service created a platform where social dialogue between labour and employer through collective bargaining and dispute management enabled labour peace. Several collective agreements were signed in the PSCBC in good faith from 1998 to 2025. The collective agreements are very relevant, in addressing the struggles the workers inherited from the apartheid era and promoted structured labour relations. These PSCBC

resolutions include Resolution 1 of 1998 Agency Shop Agreement. It ensured that all employees who benefited from collective bargaining contributed to its costs. It created the platform for Trade Unions to participate in the collective bargaining processes.

Collective Bargaining Convention, 1981 (No. 154)

The Collective Bargaining convention 154 of 1981 outlines what and how collective bargaining should be operationalised in the Public and private sector. It focuses on promoting collective bargaining, ensuring that it is made possible for all employers and groups of workers, and that rules of procedure are established to facilitate it. Although South Africa did not ratify convention 154, the South African Labour Relations Act (LRA) incorporates principles from ILO Convention 154, particularly regarding the right to organize and the promotion of collective bargaining. Specifically, sections 5, 12, and 13 of the LRA, which address the protection of employees, Trade union access to workplaces, and the deduction of Trade union subscriptions, align with the ILO's principles.

The PSCBC established the collective bargaining platform, and this led to numerous resolutions signed and implemented such as resolution 7 of 2000: Improvement in the Conditions of Service of Public Service Employees for 2000/2001 financial year. The objectives were to establish processes to develop new, more equitable benefits, career paths and pay progression for all employees in the public service, to establish a framework for restructuring and to provide for the annual wage increase for the 2000/2001 financial year. The Resolution included the following benefits: medical aid restructuring, policy on HIV/

AIDS, housing and accommodation restructuring, pension restructuring, leave, pay progression, common pay date for public servants, payment of birthday bonus, payment of 13th cheque to employees and wage increase for 2000/2001 financial year.

Abolition of Forced Labour Convention, 1957 (No. 105)

The prohibition of forced labour in South Africa is comprehensively addressed through multiple layers of legal protection, reflecting the country's commitment to international labour standards and human rights principles. This legal framework demonstrates South Africa's dedication to eliminating exploitative labour practices and protecting worker dignity.

South Africa's commitment to international labour standards is evidenced by its ratification of the International Labour Organization's Convention 105 in 1997. This convention, formally known as the Abolition of Forced Labour Convention of 1957, establishes the international foundation for South Africa's domestic prohibition of forced labour practices. Through this ratification, South Africa aligned itself with global efforts to eradicate forced labour and committed to implementing appropriate domestic legislation.

The primary legislative instrument addressing forced labour in South African employment law is found in Section 48 of the Basic Conditions of Employment Act (BCEA). This section establishes an unequivocal prohibition against all forms of forced labour, creating comprehensive protection for workers. The legislation explicitly states that no person may cause,

demand, or impose forced labour, whether such actions are undertaken for their own benefit or for the benefit of another party. This broad formulation ensures that the prohibition covers all potential scenarios where forced labour might occur.

The BCEA's provisions are further reinforced through specific regulatory provisions. Sub-clauses 1 and 2 of clause 25 of Part F of the BCEA Sectoral Determination 13 reiterate and strengthen the legislative prohibition against forced labour, providing additional regulatory clarity and enforcement mechanisms. These provisions ensure that the prohibition is not merely stated in principle but is supported by detailed regulatory frameworks that facilitate effective implementation and enforcement.

At the constitutional level, South Africa's supreme law provides fundamental protection against forced labour through Section 13 of the Constitution. This constitutional provision establishes protection against slavery, servitude, and forced labour as a fundamental human right, creating the highest level of legal protection possible within the South African legal system. The constitutional protection ensures that the prohibition of forced labour is not merely a matter of employment law but is recognised as a fundamental human right that cannot be easily amended or undermined.

Through the PSCBC, the BCEA has been reinforced with the signing of Resolution 7 of 2000 on sick leave, for example, that adheres to the BCEA's provisions on sick leave. Similarly, Resolution 1 of 2007 on overtime complies with the BCEA's requirements for overtime pay.

Equality of opportunity and treatment

South Africa's commitment to workplace equality took a step forward in 1997 with the ratification of the International Labour Organization (ILO) Convention No. 111 on Discrimination in Employment and Occupation, originally adopted in 1958. This convention establishes a comprehensive framework for promoting equality of opportunity and treatment in the workplace, mandating that member states develop and implement national policies designed to eliminate discrimination across all aspects of employment and occupation.

The core principle underlying ILO Convention No. 111 is the fundamental right of all workers to equal access to employment opportunities and fair treatment regardless of personal characteristics such as race, gender, religion, or political opinion. The convention requires member states to pursue a proactive approach in dismantling discriminatory practices and creating an environment where merit and capability, rather than prejudice, determine employment outcomes. This international commitment aligned particularly well with South Africa's post-apartheid transformation agenda, as the country sought to address decades of institutionalised discrimination in the workplace.

In the South African context, the implementation of ILO Convention No. 111 has been particularly crucial in transforming the public service sector, which had been deeply fragmented and discriminatory under the apartheid system. The transition from a discriminatory state apparatus to an equal opportunity public service required comprehensive legislative and policy interventions that would fundamentally restructure how government employment operated.

The foundation for this transformation was laid through the Public Service Act of 1994, which served as the primary mechanism for integrating the previously fragmented and racially divided public service system into a unified national framework.

The South African Constitution gives legal backing to these efforts through Section 195, which sets out the core values and principles that should guide how government operates and serves the public. This constitutional provision emphasises the critical importance of professional ethics, effective human resource management, and comprehensive career development as essential components of a transformed public service. These elements work together to ensure that the public service operates not only as an efficient administrative apparatus but also as a model employer that exemplifies the democratic values of the new South Africa.

The practical implementation of these transformation initiatives falls primarily under the mandate of the Department of Public Service and Administration (DPSA), which serves as the central coordinating body for public service reform. The DPSA's approach to implementing ILO Convention No. 111 principles encompasses multiple strategic areas, including the development of professional ethical standards, the establishment of sound human resource management practices, and the creation of meaningful career development pathways for all public servants. This has been strengthened through the PSCBC resolution 1 of 2022 Public Service summit declaration.

Furthermore, the transformation agenda has been guided by the White Paper on the Transformation of the Public Service, which provides a comprehensive policy framework for restructuring government employment practices. This document

outlines specific strategies for creating an inclusive, representative, and efficient public service that serves all South Africans equitably while providing fair employment opportunities for those who work within it.

The intersection of international obligations under ILO Convention No. 111 and domestic transformation imperatives has created a unique opportunity for South Africa to build a public service that not only complies with international labour standards but also addresses the specific historical injustices of apartheid through the PSCBC.

Bringing equality to the workplace has been the mandate of the public service in South Africa through the PSCBC. This was to promote access to a larger, more diverse and higher quality workforce in the public service. The PSCBC Resolution 7 of 2002 brought about the transformation of the public service. Other resolutions include Resolution 5 of 2001: whose objectives were to establish processes to develop new, more equitable benefits, career paths and pay progression for all employees in the public service, and to establish a framework for restructuring the public service.

Resolution 7 of 2002 framework agreement led to the transformation and restructuring of the Public Service (Utilisation of Human Resources). The objectives and principles of this agreement was to develop a framework for transformation and restructuring of the public service to give effect to PSCBC Resolution 7, 9 and 10 of 2001, provide for redeployment, retraining and alternative employment of excess employees, develop sector strategies within sectoral councils for job creation as envisaged in PSCBC. This has strengthened the transformation of the public service.

Tripartite Consultation (International Labour Standards) Convention, 1976 (No. 144)

According to the Tripartite consultation convention 144 of 1976, employers and employees necessitate representative organisations to dialogue on matters concerning labour relations. In the past 30 years of labour relations, in the Public and Private sector in South Africa, employers and employees have been engaging through social dialogues, where workers have been represented by Trade Unions from national, provincial and local level.

ILO Convention 159

South Africa's journey toward creating an inclusive public service workplace has been shaped by a comprehensive legal framework designed to address historical inequities and promote meaningful participation of people with disabilities. At the heart of this transformation lies the Employment Equity Act of 1998, a landmark piece of legislation that fundamentally changed how the country approaches disability in the workplace.

The Employment Equity Act serves as the cornerstone of South Africa's commitment to disability inclusion. This legislation goes beyond merely prohibiting discrimination; it actively challenges the systemic barriers that have historically excluded people with disabilities from meaningful employment opportunities. By explicitly forbidding unfair discrimination based on disability status, the Act creates legal protection for individuals who might otherwise face prejudice or exclusion in their professional lives.

What makes this legislation particularly powerful is its proactive approach through affirmative action measures. Rather than

simply creating a levelled playing field, the Act acknowledges that true equality requires deliberate steps to counteract decades of marginalisation and disadvantage. These measures recognize that people with disabilities have been systematically excluded from employment opportunities, and that passive non-discrimination alone is insufficient to remedy these historical injustices.

Supporting this legislative foundation is the Code of Good Practice on the Employment of Persons with Disabilities, developed by the Department of Employment and Labour. This practical guide bridges the gap between policy intention and workplace reality, offering employers concrete strategies for implementing the Employment Equity Act effectively. The Code transforms abstract legal principles into actionable steps, helping organisations understand not just what they must do, but how to do it in ways that create genuinely inclusive environments.

The constitutional foundation for these efforts runs even deeper, with the South African Constitution itself enshrining the principles of equal treatment and non-discrimination based on disability in the public service and private sector. This constitutional guarantee provides the bedrock upon which all other disability inclusion policies are built, ensuring that the rights of people with disabilities are not merely administrative considerations but fundamental human rights deserving of the highest legal protection.

Together, these policies and frameworks represent South Africa's recognition that true transformation requires more than good intentions, it demands comprehensive, legally backed action to create a public service that reflects the full diversity of

the nation's people and harnesses the talents of all its citizens, regardless of their physical or cognitive differences.

PSCBC Resolution 1 of 2022, addresses the critical issue of workplace equity by recognising the important role of women, youth, and people with disabilities in the public service. The resolution emphasises the necessity of providing comprehensive support systems to ensure equal opportunities for all employees in the public service, while simultaneously working towards the complete eradication of discriminatory practices, harassment, and victimisation. This resolution represents a commitment to creating inclusive work environments where all individuals, regardless of their background or circumstances, can contribute meaningfully and advance professionally without facing systemic barriers or mistreatment.

Employment security

Employment security is fundamental in any democratic state. This has been because termination of an employment relationship is a traumatic experience for a worker and the loss of income has a direct impact on her or his family's well-being. Seeking employment flexibility in the globalised world remains a challenge across the globe both in formal and informal sectors (ILO, 2019).

This is despite the ILO standards on termination of employment arguing for a balance between maintaining the employer's right to dismiss workers for valid reasons and ensuring that such dismissals are fair and are used as a last resort.

Through the application of the ILO termination of Employment Convention, 1982 (No. 158) over the past 30 years of labour

relations through LRA Act 66 of 1995, different instruments have been set so that the employment of a worker should not be terminated without valid reasons for such termination linked with the worker's capacity or conduct, or based on the operational requirements of the enterprise, establishment or service. Platforms have been created to address any unfair dismissal in the public and private sectors such as the PSCBC Resolution 1 of 2003 which focused on misconduct and disciplinary procedures, which can lead to dismissal if not followed properly.

Invalid dismissal included those based on union membership or participation in union activities, the filing of a complaint against an employer, race, colour, sex, marital status, family responsibilities, pregnancy, religion, political opinion, national extraction or social origin, temporary absence due to illness, or absence from work during maternity leave. Such disputes were managed through the PSCBC for the public service.

Determination of Wages

The ILO argued that wages were one of the critical conditions of work that have the most direct and tangible effect on the everyday life of workers. While wages were necessary for the maintenance of workers and their families, in some parts of the world access to adequate and regular wages was not guaranteed.

The ILO importantly emphasized the link between minimum wage-fixing and action to combat poverty. During the 30 years of labour relations the South African government have set policies that have been implemented to improve on the minimum wage in the public and private sector. Various PSCBC agreements were signed from 2002 to 2025 to determine wage

negotiations. These include Resolution 1 of 2018, Resolution 3 of 2017, Resolution 1 of 2024, on rules of conduct of proceedings, Resolution 1 of 2025 and Resolution 2 of 2024.

Wage policies and sustainable development



The ILO decent work agenda encouraged member states to adopt a minimum wage to reduce poverty and provide social protection for workers. The South African government adopted the wage policies in line with the Sustainable Development Agenda 2030 under the SDG 8 "Promote sustained, inclusive and sustainable economic growth, full and productive employment and decent work for all".

Employers and Trade Unions across South Africa through collective bargaining over the 30 years of labour relations

ensured the principles of equal work-equal pay for all employees was implemented.

As outlined above, South Africa has adhered to international standards customised in local policies. The South Africa government have progressively moved in attempt over 30 years of labour relations to address inequality. The Public service through the PSCBC signed various agreements to improve the working conditions of public servants. These included: Resolution 12 of 2002 on Pension Restructuring: The objective was to restructure and amend the benefit and governance structure of the Government Employees Pension Fund (GEPF), to provide for the recognition of service in the former Non-Statutory Forces (NSF) as pensionable service in the GEPF.

Resolution 6 of 2003: Long Service Awards: addresses the recognition of employee long services over a 5, 10, or 20 years of services and above. Resolution 7 of 2003: Pension Agreement. The objectives of Resolution 7 of 2003 were to provide for the recognition of service in the former Non-Statutory Forces (NSF) as pensionable service in the Government Employees Pension Fund (GEPF).

Working times

The ILO argue on the importance of working time and how the world of work has evolved. This has brought new working-time arrangements more so adopted during the covid-19, with remote work, on-call work, telework and the platform economy. This has brought advantages for both workers and employers, as well as disadvantages, including the encroachment of work on rest periods, the unpredictability of working hours, income

insecurity and the stress associated with the perceived need to be constantly connected to work.

South African labour market has not been an exception over the past 30 years of democracy, and the country had to regulate and adapt some national legislations in order to consider the needs of workers in relation to their physical, mental health and work-life balance, and the flexibility requirements of enterprises both in the private and public sector. The LRA (Labour Relations Act) in South Africa, alongside the Basic Conditions of Employment Act (BCEA), regulates working time and overtime. The BCEA sets the maximum ordinary working hours at 45 hours per week. Within that, an employee may work a maximum of 9 hours a day if working 5 days or fewer per week, or 8 hours a day if working more than 5 days a week.

Occupational Health and safety

According to the ILO workers must be protected from sickness, disease and injury arising from their employment. However, over the years, millions of workers the reality is very different. According to the most recent ILO global estimates, 2.78 million work-related deaths have been recorded every year, of which 2.4 million are related to occupational diseases.

Over the 30 years of labour relations South African workers including the public servants and those in the private sector have been protected through the occupational health and safety Act 85 of 1993. The working environment and places of work including office buildings have been declared safe despite some incidents over the years. This was further guided by the ILO Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187).

The convention provided coherent and systematic treatment of occupational safety and health issues. It assisted the South African government to implement coherent national policies on occupational safety.

Within the public service framework, several resolutions have been signed to address Occupational Health and Safety in the Public Service. PSCBC Resolution 3 of 1999 establishes fundamental employer responsibilities by mandating the provision of appropriate protective clothing and ensuring the maintenance of safe working environments for all public service employees. This resolution recognizes that employers bear primary responsibility for creating and sustaining workplace conditions that protect workers from occupational hazards and potential injuries.

Building upon this foundation, PSCBC Resolution 1 of 2012 expands the regulatory framework by mandating the PSCBC to conduct independent audits on compliance with the Occupational and Safety Act in the Public Service.

Social security

The 30 years of labour relations have seen the promotion of social security. As a human right against social needs, social security system can guarantee income security, health protection, prevention and reduction of poverty and inequality. This also included promotion of social inclusion and human dignity. This included access to medical care and health services, as well as income security. The 30 years of labour relations have seen employees in the public and private sectors enjoy their rights as articulated in the ILO convention.

Social security as a human right responds to the universal need for protection against certain life risks and social needs. Effective social security systems guarantee income security and health protection, thereby contributing to the prevention and reduction of poverty and inequality. The South African public and private sector has been on the right path over the past 30 years promoting social inclusion and human dignity. However, with the high population of unemployed and job seeking, more work still needs to be done post 2025. A stable workforce is guaranteed if employers and enterprises, provide social security to the workforce adapting to change.

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Through the PSCBC collective agreements, the PSCBC resolutions address social security issues and a stable workforce, particularly through collective bargaining agreements. These resolutions aim to improve working conditions, secure benefits, and address issues like pension redress, housing schemes, and dispute resolution. Collective Bargaining and Social Security:

Improving Working Conditions

The PSCBC actively engages in collective bargaining to advocate for better working conditions and social benefits for public service employees, including matters related to salary, benefits, and job security. PSCBC Resolutions have addressed the development and implementation of social security schemes, ensuring that public service employees have access to adequate social protection. The PSCBC have been playing and continue to play a crucial role in resolving disputes related to employment and ensuring fair treatment of public service employees.

Resolutions such as PSCBC Resolution 2 of 2018 aimed to address discriminatory pension practices and close out the pensions redress process. By addressing pension issues and ensuring fair treatment, the PSCBC contributes to a more stable and secure workforce within the public service. PSCBC Resolution 4 of 2010, focused on developing a sustainable home ownership scheme for public service employees. PSCBC Resolution 7 of 2015 dealt with adjustments to the housing allowance for public service employees.

Medical care

The ILO Convention No. 102: outlines on the importance of preventive care, general practitioner care, specialist care, essential pharmaceutical supplies to all citizens including employees in the public and private sector. The 30 years of labour relations have made strides towards medical care for employees through medical schemes such as Government Employee Medical Scheme (GEMS), South African Police Service Medical Scheme (POLMED) and others.

The PSCBC implemented resolutions regarding medical aid, particularly for GEMS. Key resolutions include PSCBC Resolution 1 of 2006, which established GEMS, and PSCBC Resolution 2 of 2015, which deals with adjustments to medical assistance. These resolutions cover aspects the employer's subsidy, the Medical Price Index (MPI) for adjustments, and the equalisation of post-retirement medical assistance.

Maternity benefit

The ILO Convention No. 102: outlines that medical care, should include at least prenatal, confinement and postnatal care, either by medical practitioners or qualified midwives, and hospitalization where necessary. The 30 years of labour relations have seen female employees in the public and private sector enjoying their rights in terms of maternity benefits.

The Basic Conditions of Employment Act (BCEA) establishes the minimum standard for maternity leave across South Africa. Under this legislation, female employees are entitled to four months of unpaid maternity leave, providing job security during this critical period. However, the BCEA notably does not place any obligation on employers to provide financial support during this absence. Instead, the Act creates a safety net through the Unemployment Insurance Fund (UIF), from which eligible employees can claim maternity benefits to partially offset their loss of income during leave.

The public service operates under a more generous framework established by PSCBC resolution 7 of 2000, particularly clause 7, which outlines the agreement on leave and benefits. This resolution provides a comprehensive framework for various types of leave.

Most significantly, PSCBC Resolution 7 of 2000 entitles public service employees to four months of fully paid maternity leave for each confinement. This provision represents a substantial improvement over the BCEA's unpaid leave model, demonstrating the public service's commitment to supporting its female workforce without the financial hardship that often accompanies extended unpaid leave. South African Labour laws Vs Labour relations in the 31 Years of Democracy.

30 years of labour relations have enshrined pieces of legislation such as the National Minimum Wage Bill, the Labour Laws Amendment Bill, the Basic Conditions of Employment Act and the Labour Relations Act which have all contributed to building a socially just labour system. The laws have enabled acceptable daily wage rates, the extension of bargaining agreements to non-parties, and overall improvements in workers' conditions in South Africa.

However, despite the successes made, much more needs to be done to address existing disparities and respond positively to calls for "equal pay for equal work" across all sectors.

Continual strengthening of existing labour laws and extensive oversight on the implementation of the laws post 2025 have been prioritised. Accountability has led to parliament sharpening policy and law-making mechanisms to improve the living and working conditions of the South African working class at large.

The South African parliament have committed to build a truly democratic and prosperous society where workers and all individuals enjoy a better quality of life. Parliament continued in the past 30 years to strengthen and protect workers' rights, fight against inequality, poverty, and unemployment, and promote legislative improvements across all sectors.

However, the 30 years of labour relations' achievement would not shadow the challenges faced in protecting workers' rights and improving working conditions, and the soaring unemployment rates particularly amongst the youths.

As South Africa celebrates the milestones made in labour relations over the 30 years, suffice to indicate what has been achieved through the PSCBC collective bargaining processes. The role of ILO labour standards adopted by the PSCBC in promoting sound labour relations in the public service cannot be overemphasized.

Conclusions

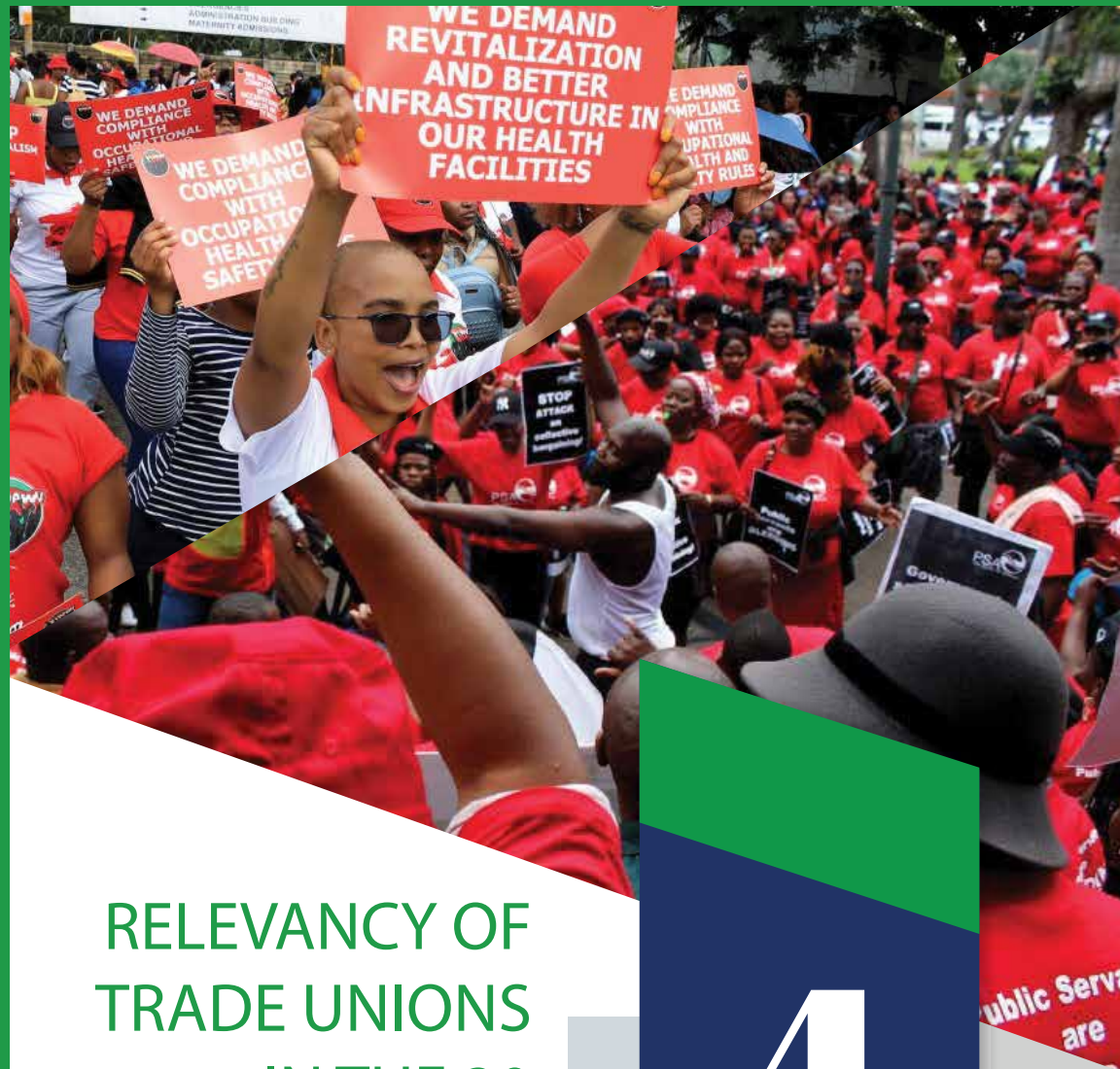
It has been a journey of 30 years and good system of labour relations has emerged extremely valuable, both in private and in public sectors. This has contributed to improving the working conditions of the employees and their wellbeing. Workers found themselves in the best position to contribute to the objectives of the sectors they work in, and for the public service, to deliver higher quality services to the public. It has been approved that good labour relations can increase employees' productivity, while worse working conditions can lead to less efficiency in employee's productivity. This has been evident in the South African mining sector with sit downs and in the public sector.

In the past 30 years of labour relations, the south African government has been cautious enough in the process of privatisation, retrenchment and redeployment including reconfiguration of the government departments to minimise the consequences on labour relations. While globalization affected South African economy as well over the past 30 years, the South African labour laws and reforms were made in such a way that the working class was protected.









RELEVANCY OF TRADE UNIONS IN THE 30 YEARS OF DEMOCRACY

4

Chapter 4

RELEVANCY OF TRADE UNIONS IN THE 30 YEARS OF DEMOCRACY

Introduction



In the 30 years of democracy, Trade unions have played an important role in the South African labour relations. To improve the labour relations and promote labour peace, employees have had to be at par with employers during collective bargaining, they join or form trade unions.

While the apartheid government did not favour establishment of trade unions, the democratic dispensation changed the environment, by enabling social dialogue through a tripartite

relation between employees, employers and the government. This enabled trade unions to be part of decision-making process on workplace related matters including in the PSCBC.

While the South African Constitution of 1996 stated that every employee has the right to form and join a trade union and participate in the activities and programmes of a trade union. The Trade unions influenced policy related decisions in the past 30 years of labour relations through participation in decision-making bodies like the National Economic Development and Labour Council (NEDLAC) and the International Labour Organisation (ILO). This was facilitated through Federation such as Congress of the South African Trade Unions (COSATU) and The Federation of Unions of South Africa (FEDUSA). Government has enacted legislation that gives effect to the rights that are enshrined in the Constitution (Marks, 2007; Monyatsi, 2013).

Through protection afforded by legislation, trade unions have been able to recruit members in the private and public sectors represented in Bargaining Councils with Employers' Organisations representing such sectors. This has enabled, negotiations on terms and conditions of employment for employees.

Trade Unions in the PSCBC

Trade unions registered at the PSCBC were granted organisational rights through the Resolution 2 of 2017: Agreement on Thresholds and Procedures for the Granting of Organisational Rights within the Public Service (Trade Unions). The Council agreed to provide organisational rights in the workplace and establish the threshold a trade union must meet in order to exercise such rights in the public service. Trade Unions who were admitted as parties to Council became effective, and were granted organisational rights in Section 12, 13, 14 and 15 of the LRA in the relevant workplace.

The 30 years of labour relations have seen more Trade unions joining the PSCBC. Unions such as; SADTU (South African Democratic Teachers' Union), PSA (Public Servants Association of South Africa), National Education Health and Allied Workers, NEHAWU POPCRU (Police and Prisons Civil Rights Union), HOSPERSA (Health and Other Service Personnel trade Union of South Africa) / NUPSAW (National Union of Public Service & Allied Workers) / NATU (National Teacher's Union), NAPTOSA (National Professional Teachers' Organisation of SA), SAPU (South African Police Union) and DENOSA (Democratic Nursing Association of South Africa). The unions represented 90% of public service employees across various sectors. The PSCBC's key function has been to create a platform for developing sound labour relations in the public service, through the provision of independent collective bargaining and dispute management services.

While there have been successes in labour relations meeting the ILO standards across the public and private sector, considerable challenges exist for Trade Unions. Some of the

challenges was the declining membership, inter-union rivalry and radical changes in the nature of work, thus, trade unions need to question their continued relevance and revitalise themselves or face becoming irrelevant.

Important to recognise in the 30 years of labour relations, that Trade unions have played an important role in the struggle for democracy and workers' rights in South Africa, while only 23% of the country's economically active employees have been unionised, a decline from 34% in 2016.

With the younger generation of workers it has been a challenge to convince them to join Trade Unions while they doubted the value of union membership. The older members have also lost trust in unions. The relevancy of the Trade unions in the changing future of work, post 30 years, need unions that can adapt and change.

The future of work remains uncertain with the developments experienced during in the 30 years, including the Covid-19 experience, remote work, adoption of 4IR etc. The South African trade unions have shown resilience though but need to enhance great resilience and demonstrate their capability to revitalise themselves in innovative ways.

In the past 30 years of labour relations, South Africa's 225 registered trade unions represented approximately three million workers. However, the changing working environment such as, employment contracts, outsourcing, informalisation of jobs and remote working, have led to a decline in membership numbers.

The last 30 years have seen the growth of Trade unions which gave rise to competition in recruiting members from the same pool in the Public and Private sectors. Over the years, some

unions lost membership to rival unions in the same sector. Post 2025, unions have to strategise and look beyond the existing pool of workers and consider how to register employees including younger workers.

The 30 years have also seen some Trade unions losing the support of donors impacting on the unions' ability to recruit members and train competent officials. Some Union officials left the movement for more lucrative Public and Private sector roles. The 30 years have seen the growing loss of trust in Unions by workers as the workers meet daily workplace challenges have affected the Unions. The debate from the workers has been on belonging to a trade union while where there has been limited accountability.

Cillié 2023 argued that four possible future scenarios for Trade Unions post 30 years of democracy exist, thus marginalisation, due to the decline in membership and ageing unions losing strength and credibility; or dualisation, with unions defending their current positions, focusing on servicing workers in sectors where they remain strong, mainly workers in permanent employment in large industries and the public sector.

There has been limited scenarios of alternative forms of worker participation, led by management, taking the place of trade unions. This has a potential to erode the power of collective bargaining and collective action.

Like in other parts of the world (Poland), the absence of union representation and collective bargaining, could lead to the employer negotiating directly with individual employees. Employers become the sole decision-maker on the working conditions, wages, health and safety of an employee, irrespective of the level of worker participation.

Post 30 years, revitalisation of trade unions is not an option but should be promoted to strengthen inclusive and effective social dialogue. Listening to the needs of a new generation of workers, embracing technology and considering new forms of organising and collective action could be the way forward post 2025.

For Trade Unions to be relevant, they need to take account of the changing nature of work and represent workers in new forms including, the gig and informal economy. Acting collectively among unions has been a challenge in the past 30 years. Going forward, unions have to remain relevant and effective and improve their mandates, and management.

Monyatsi (2013) highlighted some achievements made through COSATU and FEDUSA. These included, amongst others the 1980s' strikes, the anti-privatization and anti-VAT campaigns. The campaigns forced the then government, together with employers to start negotiating issues such as economic policy, restructuring, and engage with labour. This later led to the establishment of a negotiating forum such as the National Economic Development and Labour Council (NEDLAC) where engagement on policies occur. This council have been pivotal in policy reforms for the past 30 years.



Collective Bargaining in the Public Service



As part of the 30 years of labour relations, including the covid period 2020-2022 saw the labour relations affected in many forms. The Socio-economic challenges caused by the Covid-19 affected both the public and private sectors in South Africa. This led to changes in the fiscus for the South African government where budgets had to be redirected. For labour relations in the public sector, it meant government looking for ways to meet the demands of collective agreements signed prior to 2019 such as the Resolution 1 of 2018 wage agreement. Resolution 1 of 2018 was implemented with the last part not fully implemented, the 2020/2021 which resorted to legal process undermining collective bargaining.

While the employer argued that the economic development of the country in the wake of the Covid-19 pandemic was a constitutional imperative. It was crucial that government increased financial resources to the recovery of the economy

and the protection of the lives and livelihoods of the nation's people ensuring that transparent social dialogues were promoted with parties to council to reach a reasonable settlement on the collective agreements signed.

Despite the challenges, South African Public sector employees' jobs were secured, and salaries were not affected due to covid-19. What was promoted was continuous social dialogue for the implementation of existing and new collective agreements (Mthethwa, 2021).

While the country had no road map to deal with the pandemic the world of work was profoundly affected by the global Covid-19 pandemic. This led to changes in ways in which work was organized in the public service with some public servants working remotely or at the workplace.

The South African government played a central role in policymaking and engaged with representatives of workers through processes of tripartite social dialogue in the PSCBC. Tripartite agreements and government policy actions have been complemented and reinforced by collective agreements.

Effective workplace cooperation helped ensure safe and productive workplaces in the public service through collective bargaining and its outcomes, without undermine the important role of trade unions. Social dialogue between employers' organizations and workers' organizations led to joint responses including during covid-19 crisis (ILO Brief, 2020).

The lessons learnt during the covid crisis marked an important era of a maturing democracy and labour relations where social partners addressed issues of health and safety and health, remote work, flexible working time arrangements, cost reduction

measures, and income support for workers. Such participative approaches ensured effective and equitable solutions were found for all workers, using collective bargaining and workplace cooperation.

Collective bargaining post Covid-19 used the lessons learnt to review policies and procedures in both public and private sectors to reinforce the importance of collective bargaining and collective agreements signed. This is to ensure collective agreements were binding and that services will be delivered to the people and working conditions of employees improved.

The Bargaining councils have been pivotal in ensuring that labour relations were promoted. However, the lessons learnt over the past 30 years of democracy, highlight the importance of sector council and their repositioning to ensure labour peace. Parties to councils have to be transparent in sharing their views and position for constructive dialogues.

Enforcement procedures for collective agreements need to be strengthened or developed where there is none to ensure that collective agreements were implemented and monitored. Over the 30 years of democracy have seen the securing of safe working conditions and continuous business operations through negotiated agreements.

The labour relations have been re-arranged post covid-19. This has led to a series of collective agreements signed in the public service to build a capable state and creating opportunities for workers through new skills development, professionalisation of the public service and enhancing future employment prospects and productivity.

The right to strike

Unions have remained relevant due to collective bargaining. While social dialogue and dispute management have been maturing in the public service, one of the labour relations achievements has been the freedom of association and the right to strike. Unions in the public service such as the National Education, Health and Allied Workers' Union [NEHAWU], HOSPERSA, SADTU, POPCRU, SAPU, DENOSA, NAPTOSA, NPSWU, NATU, NUPSAW, PEU, PAWUSA, PSA, SAOU, SAEPU, SAMATU, and UNIPSAWU have been progressive in collective bargaining.



Conclusion

The 30 years of labour relations have been trying and testing in labour relations. This led to the identification of labour policies, promotion of economic recovery measures; employment retention, social protection and public health measures; reinforcement of occupational health and safety and promotion of workers' rights.

Stronger social dialogues, through collective bargaining agreements or agreements between employers' and workers' organizations, have addressed common labour and workplace challenges.



CARING
EMPLOYER AND
30 YEARS OF
LABOUR
RELATIONS

Chapter 5

CARING EMPLOYER AND 30 YEARS OF LABOUR RELATIONS

Introduction

The chapter outlines the milestones the public sector through the Department of Public Service Administration committed to the creation of labour peace in the past 30 years. Creation of functional Human resource development Institutions have been a model the South African public service adopted in the past 30 years in order to create an enabling environment for labour peace. The past 30 years of labour relations has made labour relations more effective through the government and private sector institutions created.

The Department of Public Service and Administration (DPSA) was established to develop policies and processes that improved how HR functions in the public service were managed across the three spheres of government. The centralized policy function provided structure and uniformity across the Public Service (Twenty-year review South Africa 1994 – 2014). DPSA Mandates and regulations

The DPSA is mandated by Chapter 10 (Section 195 [1]) of the Constitution of the Republic, Public Administration, in that it must govern led by the democratic values and principles enshrined in the Constitution. These principles over the 30 years promoted high standard of professional ethics in the public service, efficient, economic and effective use of resources,

and inculcation of a development oriented public administration. Public services have been provided impartially, fairly, equitably and without bias across the public sphere.

Through Batho Pele principles, people's needs have been responded to, with the participation of the public in policy making. The public service promoted accountability, and transparency fostered through the provision of timely, accessible and accurate information. The PSCBC has been the cornerstone for collective bargaining, to transform the public service with the signing and implementation of various resolutions.

PSCBC Resolution 2 of 1999: Disciplinary Code and Procedures: The purpose of Resolution 2 of 1999 is to support labour relations in the public service; to promote mutual respect between employees and between employees and employer, to ensure that managers and employees share a common understanding of misconduct and discipline, to promote acceptable conduct, to provide employees and the employer with a quick and easy reference for the application of discipline, to avert and correct unacceptable conduct, and to prevent arbitrary or discriminatory actions by managers toward employees.

PSCBC Resolution 8 of 1999: Transitional Measures for Disciplinary Code and procedure: The purpose of Resolution 8

of 1999 is to establish transitional measures for disciplinary proceedings initiated but not completed on the date of implementation of the Disciplinary Code and Procedures (Resolution 2 of 1999). PSCBC Resolution 5 of 1999: Reduction in Employer Contribution to GEPP: Parties to the PSCBC agreed to reduce the employer contribution to the GEPP from 17 per cent to 15 per cent of salary, without reducing benefits to employees.

PSCBC Resolution 10 of 1999: Adoption of Incapacity Code and Procedures: The purpose of the code and procedure was to assist employees overcome poor performances, promote efficient and effective performance, avert and correct inadequate performance, ensure that the employer and employees share a common understanding of incapacity, prevent arbitrary or discriminatory actions by the employer toward employees, give reasonable assistance to employees who are incapable of performing in accordance with the needs of their jobs, promote mutual respect between employees and between employers and employees and support constructive labour relations in the public service.

The DPSA further promoted good human-resources management and career-development practices, examining human potential across the public service. The Public administration broadly represented the South African people, with employment and personnel management practices based on ability, objectivity, fairness, and the need to redress the imbalances of the past to achieve broad representation. Through the PSCBC resolutions these principles have been implemented through PSCBC Resolution 1 of 2013: Service Charter: The objectives of this Resolution are to improve service delivery programmes, reinforce the partners' commitment to service delivery

improvement for the benefit of all citizens, clarify the rights and obligations of each of the parties, acknowledge and reward excellent performance, professionalise and encourage excellence in the public service, enhance performance, facilitate a process to define service standards in various sectors, strengthen processes and initiatives that prevent and combat corruption, facilitate social dialogue among partners, help government department rise to the challenge of treating citizens with dignity and respect and meeting their demands equitably and fairly and ensure an effective, efficient and responsible public service.

Legislative Mandate

According to section 41 of the Public Service Act and subject to the Labour Relations Act and the PSCBC collective agreements, the DPSA Minister made determinations regarding the conditions of service of 1.2 million employees, including determinations regarding salary scales and allowances for particular categories of employees. The PSCBC provided the platform for social dialogue and collective bargaining leading to the signing, implementation and monitoring of collective agreements.

Section 5(6) of the Public Service Act provides that all collective agreements contemplated in section 5(4) are deemed to be determinations made by the Minister and the Minister is empowered further to issue directives to elucidate or supplement such determinations. Various collective agreements signed at the PSCBC such as the Public Resolution 1 of 2022 Summit Declaration, outlined agreement clauses for collective bargaining, professionalisation of the public service, the use of Fourth Industrial Revolution and women empowerment.

The DPSA has been guided by the Public Administration Management Act, 2014 that seek to promote the values and principles contained in section 195(1) of the Constitution of the Republic of South Africa, 1996 by establishing a framework that creates a unified system of public administration that traverses all three spheres of government.

The DPSA has been deemed employer of choice, by implementing the Public Administration Management Act that allowed employee mobility between all three spheres of government through transfers and secondments based on the PSCBC resolutions such as Resolution 1 of 2019 Reconfiguration of the Public service.

Various directives have been offered by the Minister of DPSA as a commitment to the implementation of the PSCBC resolutions. Examples of these directives include: The directive on human resources management and development for public service professionalisation, directive on conducting business with an organ of state, the public service occupational classification system, directive on other remunerative work outside the employee's employment in the relevant department as contemplated in section 30 of the public service act, 1994. The directive on the institutionalisation of the ethics officer function in the public service.

Through the PSCBC resolutions 1 of 2022, much ground has been made in the 30 years of labour relations to prohibit employees and special advisers from doing business with the State although much still needs to be done. This also include the disclosure of financial interests of employees, special advisers and their spouses/ life partners.

The DPSA in its commitment to the PSCBC Resolution 1 of 2022 Public service summit declaration, developed a professionalisation framework, to promote a developmental state as well as the Public service Charter developed and signed in the hospice of the PSCBC to determine minimum norms and standards relating to, amongst others, section 195(1) values and principles; capacity development and training; ICT in the public administration; integrity, ethics and discipline; disclosure of financial interests; measures to improve the effectiveness and efficiency of institutions.

Regulation frameworks have been developed for the establishment, promotion and maintenance of service centres to enhance service delivery to the public. There has been the establishment of Public Administration Ethics, Integrity and Disciplinary Technical Assistance Unit to strengthen oversight of ethics, integrity and discipline management and to put in place measures to deal with corruption related misconduct in the public administration.

The compliance with the minimum norms and standards set by the Minister for Public Service and Administration in line with Section 16 of the Public Administration Management Act, 1994 was guided by the PSCBC resolutions such as Resolution 5 of 2017: Agreement on the Establishment of an Advisory Body for the Government Employees Housing Scheme (GEHS), Resolution 1 of 2018: Agreement on the Salary Adjustments and Improvements on the Conditions of Service in the Public Service for the Period 2018/2019:2019/2020 and 2020/2021. The agreement was implemented in part and failure to adhere to collective bargaining process resorted to court processes undermining the collective bargaining process.

The DPSA has transformed the workplace across the public service, through the implementation of PSCBC Resolutions from 1998 to 2025. Other resolutions include Resolution 2 of 2018: Agreement on the Compensation of the Redress of Discriminatory Pension Practices. Resolution 1 of 2019: Agreement on the 2019 Reconfiguration of Government Departments. With the reconfiguration of government departments at both national and provincial levels, gave effect to the changes and the reconfiguration of the national departments and provincial departments, to ensure alignment between the announced cabinet portfolios and the administrative structures in support of the ministers responsible for said portfolios. Resolution 1 of 2020: Agreement on the amendment of PSCBC, Resolution 5 of 2001 Annual Leave and Resolution 1 of 2021: Salary Adjustment for Public Servants 2021/2022.

The DPSA programme 3 on negotiations, labour relations and remuneration management have been strengthened and effective over the years. The PSCBC resolutions 1 of 2022 that enabled the management of organizational development, job grading and negotiations, Labour Relations and Dispute Management in the public service. Various resolutions signed allowed the administration and the implementation of the Government Employees Housing Scheme and macro-organisation of the state and ensure coordinated collective bargaining (Resolution 1 of 2025 mandates continued engagement in the GEHS consultative committee. A committee was established based on Resolution 7 of 2015, to fast-track the design and establishment of the GEHS's institutional and administrative framework).

The DPSA guided by the PSCBC Resolution 7 of 2015: Framework Agreement to Establish GEHS and Resolution 5 of

2017 Establishment of an advisory body for government employee housing scheme GEHS administered the housing allowance scheme and provided stakeholder management and facilitated employee access to affordable housing finance and housing supply (ownership and rental). It also promoted employees' medical benefits through the establishment of GEMS (Resolution 3 of 2015 and Resolution 4 of 2017 Review of the government employee medical scheme).

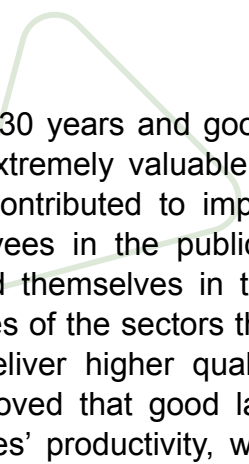
The DPSA promoted the Public Administration Ethics, Integrity and Disciplinary Technical Assistance Unit focussed on addressing Ethics, Integrity, Discipline Management and Corruption in the Public Administration. This was also guided by the PSCBC Resolution 1 of 2013: Service Charter.

Through the PSCBC Public service summit declaration Resolution 1 of 2022, 4IR was promoted to ensure Information and Stakeholder Management at various government spheres. The DPSA manages, develops and monitors the implementation of policies and programmes in information management, data and information archiving, and coordinates and facilitates ICT stakeholder management. The DPSA, manages, oversees and facilitates service access, operations Management, Service Delivery Improvement Initiatives in the public service. It also coordinates and facilitates citizen relations and public participation programme.

Professionalising public administration was identified as one of the corner stones of improved labour relations and service delivery. This could lead to building state capacity to meet its goals and objectives.



Conclusions



It has been a journey of 30 years and good system of labour relations has emerged extremely valuable through the DPSA and PSCBC. This has contributed to improving the working conditions of the employees in the public service and their wellbeing. Workers found themselves in the best position to contribute to the objectives of the sectors they work in, and for the public service, to deliver higher quality services to the public. It has been approved that good labour relations can increase in the employees' productivity, while worse working conditions can lead to less efficiency in employee's productivity. This has been experienced in the mining sector with sit downs and in the public sector.

THE FRUITS OF
30 YEARS OF
LABOUR
RELATIONS

6

Chapter 6

THE FRUITS OF 30 YEARS OF LABOUR RELATIONS

Introduction



The 30 years of labour relations has seen the parliament passing labour laws that deal with labour issues, to improve the working conditions of the workers and bring labour peace.

In the 30 years of labour relations there has been reduction in the exploitation of workers a feature that existed during apartheid. Apartheid promoted cheap labour, workers had to contend with the migrant labour system, job reservation, and other oppressive practices. However, trade unions remained an

important source of resistance. This was illustrated by the 1980s, COSATU organised mass action against oppressive labour laws and workers emerged as a strong political force.

The Law have enabled collective bargaining and made provisions for bargaining councils. Various conditions of service have been implemented and promoted through the PSCBC, this include but not limited to, workers benefiting from the Unemployment Insurance Fund, maternity leave, sick leave and medical aid.

Over the past 30 years of labour relations workers have celebrated the workers' month in May each year. Various government departments including the Department of Labour interacted and shared information with the workers.

The government have remained absolute in ensuring the welfare and good conditions of service for workers. This has been demonstrated by the progressive labour legislation and key programmes in line with the Constitution. These Labour laws have prevented to a larger degree the discrimination at the workplace.

Through social dialogue and partnership between employer and labour in the PSCBC, social justice through labour relations dispensation has been promoted. It has not been an easy road but through continuous engagements, progress has been made

which have put south Africa to be one of the best countries in Africa and the world where workers enjoy their rights.

“The labour laws tick all the right boxes on all fronts and these call for celebration by none other than the workers themselves”. “We are satisfied that through various forms of engagements, we have taken a realistic pulse on what needed to be done and we have by and large, stayed as close as possible to the spirit and within the International best practice conventions, and the country’s constitution.” The Minister of Labour.

The Emergence of Multi-Year Salary Increase Agreements



The 30 years have brought some changes in the form and nature of agreements signed at councils including on wage agreements. The traditional rhythm of annual salary negotiations in the public service has been fading, replaced by an increase of multi-year agreements. While this shift offered stability and predictability, it also presented unique challenges for both labour unions and governments.

The attraction of multi-year agreements lies in their ability to bring stability and predictability to fiscal planning. Both governments and unions benefit from knowing the wage trajectory for a defined period to allow government to allocate resources efficiently and unions to provide reliable information to their members regarding future earnings. Additionally, the agreements necessitated long-term strategic planning. Instead of being preoccupied with annual negotiations, both parties can focus on broader organisational goals and initiatives.

However, this shift also presents substantial challenges. One key concern is the loss of flexibility in responding to unforeseen circumstances. If economic conditions fluctuate significantly over the multi-year period, the pre-determined wage increases might not reflect the actual financial situation. This could lead to dissatisfaction on either side, with unions struggling to secure adjustments for unexpected inflation or governments facing budgetary pressures due to higher-than-projected costs.

Furthermore, multi-year agreements can potentially hinder employee morale if wage increases lag behind rising inflation or cost of living. Unions might find it difficult to negotiate mid-term adjustments, leaving members feeling their concerns are not adequately addressed.

Bargaining Beyond Salaries



The landscape of collective bargaining in South Africa's public service is undergoing a transformation, with a notable shift from the traditional focus on salaries and benefits towards a broader scope encompassing a diverse range of issues.

The expansion of bargaining scope in the public service collective bargaining represents a significant evolution from traditional salary negotiations to encompass a broader range of issues and concerns. This expansion reflects the changing nature of public service work, societal expectations, and the recognition of the interconnectedness of various aspects of employment conditions (PSCBC Resolution 1 of 2025 on salary adjustments and improvement of conditions of service). The 30 years have seen, workforce dynamics and societal influences have changed the scope of bargaining to include a wider range of issues beyond traditional salaries negotiations.

These issues included the following:

Increased Emphasis on Non-Economic Issues: Traditionally, collective bargaining in South Africa's public service has focused heavily on economic issues such as wages and benefits. However, there has been a growing recognition of the importance of addressing non-economic issues such as workplace diversity, transformation, and employee wellness. Unions have been advocating for the inclusion of these issues in collective bargaining agreements to create more holistic and inclusive workplaces.

Flexible Work Arrangements: With the advent of technology and changing work dynamics, there has been a push for more flexible work arrangements in the public service. This includes initiatives such as remote work, flexible hours, and compressed workweeks. Collective bargaining has been used as a platform to negotiate the terms and conditions of these arrangements, balancing the needs of employees with the operational requirements of government departments and agencies.

Focus on Skills Development and Training: As South Africa seeks to address skills shortages and enhance service delivery, there has been an emphasis on skills development and training in the public service. Collective bargaining agreements have been used to negotiate for funding and support for employee training programs, career development opportunities, and skills transfer initiatives.

Work-Life Balance: Recognizing the importance of work-life balance in employee well-being and productivity, collective bargaining has increasingly addressed issues such as parental leave, childcare support, and flexible working arrangements. Unions have been negotiating for policies and benefits that

enable employees to better balance their work responsibilities with their personal and family commitments.

Dispute Management the Victory of democracy



Through the right platforms, workers' disputes have been managed through the PSCBC and sector bargaining councils. In the 30 years of labour relations, workers have been able to participate in protected strike actions.

Democratisation of the workplace

The 30 years of labour relations have witnessed the public service having been central in addressing the ravages of South Africa's past. This meant that the public service needed to undergo an extensive programme of transformation.

The democratisation necessitated modernising the structures and functioning of government in pursuit of the objectives of efficient, effective, responsive, transparent and accountable government through the PSCBC. The 30 years embraced the democratisation of multidimensional and impacts on the development of public policy, the allocation of public resources as well as the delivery of government services.

Labour through unions has influenced a number of policies playing a pivotal role in the PSCBC. This led to labour reform in the public service.

Through the LRA, the prior 1994 fragmentation of bargaining in the public service, the energies and efforts of the public service unions concentrated on ensuring greater co-ordination of collective bargaining and the inclusion of the police within the scope of the Act.

Lessons learnt over the 30 years of democracy, illustrated that the labour relations is not an end in its self but continuous process that the 7th administration have to nature post 2025. The PSCBC and sectoral bargaining councils as well as the

demarcation of further sectors for bargaining should continue to be positioned well to coordinate collective bargaining.

The 30 years of labour relations led to the introduction of workplace forums through Chapter 5 of the Labour Relations Act co-determination and the worker participation on the industrial relations agenda.

Celebrating Gender mainstreaming in the Public service



Over the 30 years of labour relations, the Constitution of the Republic of South Africa, 1996 (Act 108 of 1996) has been guided by a range of international and human rights instruments, including Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) which lists the rights of all girls and women; and the Beijing Declaration and its Platform for Action which aims at accelerating the implementation

of the Nairobi Forward-looking Strategies for the Advancement of Women and removing all the obstacles to women's active participation in all spheres of public and private life through a full and equal share in economic, social, cultural and political decision-making.

Chapter 2 of the Constitution of the Republic of South Africa is the Bill of Rights and it sets out the fundamental rights of all South Africans, including the right to dignity and the right to equality. Commission on Gender Equality Act (1996) provide for the composition, powers, functions and functioning of the Commission on Gender Equality; and to provide for matters connected therewith.

The Commission for Gender Equality is an independent chapter nine institution. It draws its mandate from the South African Constitution by way of the Commission for Gender Equality Act of 1996. The mission of the Commission for Gender Equality (CGE) is to promote respect for gender equality and the protection, development and attainment of gender equality through undertaking research, public education, policy development, legislative initiatives, effective monitoring and litigation.

Promotion of Equality and Prevention of Unfair Discrimination Act (PEPUDA) (2000) is the national legislation mandated by section 9(4) of the Constitution and thus enjoys special constitutional status. Significantly, the Act recognises the need to address systemic discrimination and specifically aims at the 'eradication of social and economic inequalities. Section 13 of PEPUDA, discrimination based on the prohibited ground of gender was considered unfair, unless it was established that the discrimination was fair. Section 8 of PEPUDA stipulates that no

person may unfairly discriminate against any person on the ground of gender and goes on to list various prohibited forms of gender-based discrimination.

Employment Equity Act is part of legislation designed to address entrenched racial and gender inequalities. The Act promoted equity in the workplace, by promoting equal opportunity and fair treatment in employment through elimination of unfair discrimination and implementing affirmative action measures to redress the disadvantages in employment experienced by designated groups, in order to ensure equitable representation in all occupational categories and levels in the workforce.

Through section 27 of the Act, employers were required to report on the representation and remuneration of their workers by gender and population group. The employment equity included an affirmative action act, aimed to rectify labour market inequalities. The Act's primary aim is to ensure fair representation of race, gender and people with disabilities in all sectors, occupations, and levels of the workforce. The 30 years of democracy have seen much progress in the implementation of the act although much work still need to be done across sectors.

The Employment Equity Act of 1998 has facilitated equity in access to formal employment for women in the past 30 years. However, access to training programs and gender inequality in the workplace remains a challenge. In addition, poor access to, and the availability of childcare services for women, particularly single mothers, prevents them from advancing in the workplace. The successful implementation of the Community Work Programme (CWP) is specifically demonstrated through increased participation by women, the youth and people with disabilities. The CWP has been well targeted to achieve its

objectives of income generation, skills development and work opportunities for these vulnerable groups.

The 30 years of labour relations have seen the establishment of the National Gender Machinery a comprehensive institutional structure. This institutional framework gave direction to the development of a gendered programme of action to collectively influence policy and practice at all levels of the state and society.

Women participation in the economy

Prior to 1994, women constituted only about 36 percent of the labour force in the formal economy in the mid-1990s, according to official estimates. Women of all races generally held lower-paid jobs than men, and they were paid less in comparable jobs. During the apartheid era, white women most often worked in service industries and clerical positions. A few white women held supervisory jobs or government offices. Black women dominated the large domestic work force; some worked in clerical positions or in temporary jobs (StatsSA report, 2024).

By 1993, a year before the end of apartheid, women in low-paying jobs such as domestic work or unskilled farm labour were paid 21% less than men in equivalent positions, the wage gap narrowed to 7% in 2014 (Sguazzin 2019). Across the workforce, the proportion of women with tertiary education doubled to 20% in 2015 from 10% in 1993, compared with a more modest rise to 15% from 11% for men (West 2019).

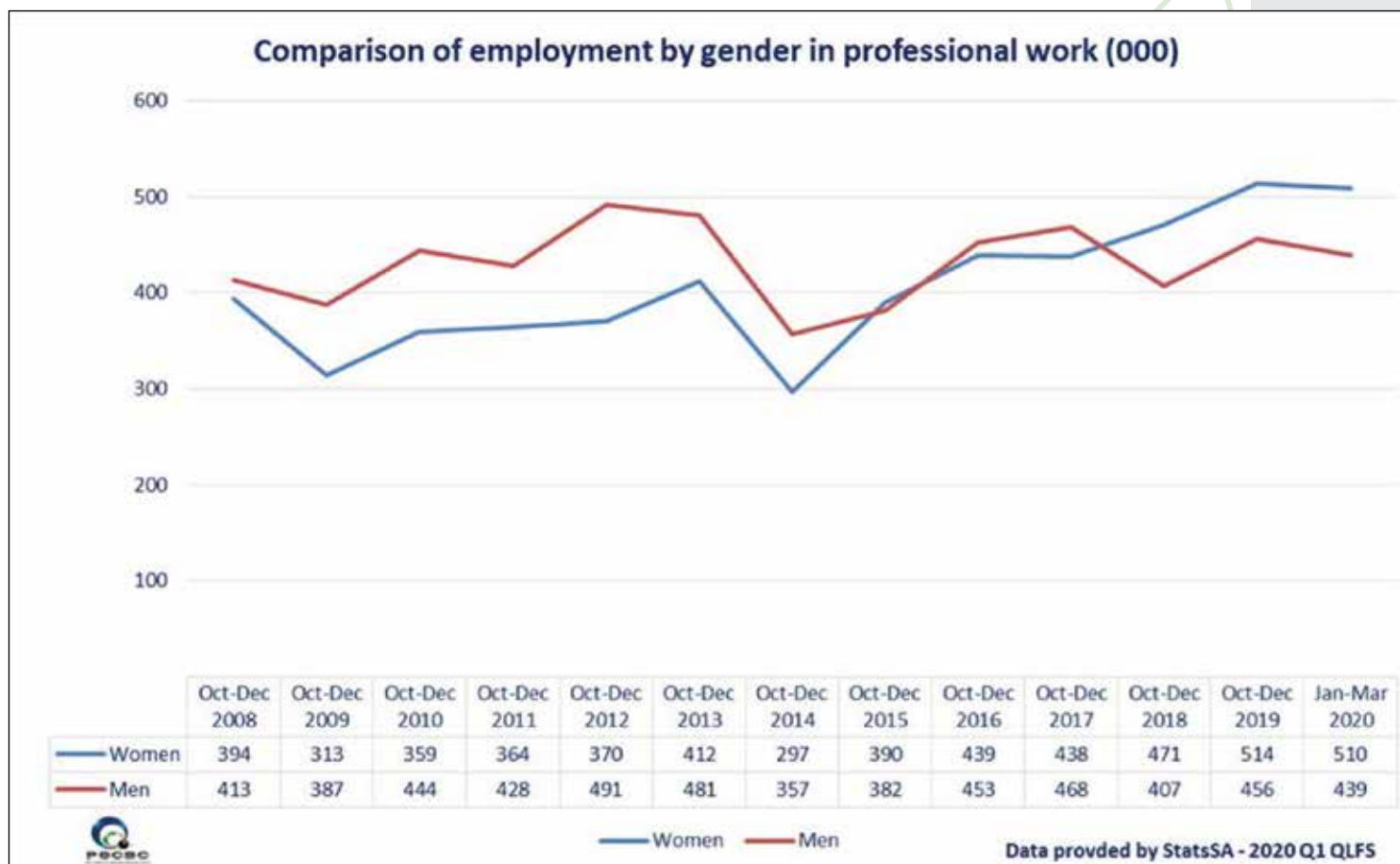
From 1994 the South African government of National Unity inherited a country with deep gender disparities, where women particularly in the black population faced many disadvantages and discriminations through apartheid.



In the Public service guided by PSCBC Resolution 1 of 2022, women empowerment programme was strengthened in the public service. The 30 years, saw the new government enacting the Employment Equity Act in order to address racial and gender inequalities that were caused by the apartheid system. Section 27 of the Employment Equity Act 55 of 1998 stipulates that every employer, when reporting, is required to report on the representation and remuneration of their workers by gender and by population group. The Employment Equity Act of 1998 has facilitated equity in access to formal employment for women. However, access to training programs and gender inequality in the workplace remains a challenge.

Between 2004 and 2009, women employed in the public sector as senior management accounted for 34% and women in the executive position in the private sector were 14.7% (Kgomotso Mathe). Less than 2 percent of Parliament members were women before 1994. Since then, there has been a steady increase in women's representation in decision-making over the years. After 2019 national elections the representation of women in Parliament has increased significantly from 2.7% before 1994 to 42.7% in 2019.

The post-apartheid government has been successful in improving the human-capital characteristics of women and this has led to an increasing number of women in high-skilled occupations. The following graph shows breakdown of South African rate by gender in professional work with annual comparison from the last quarter of 2008 to the first quarter of 2020. As depicted in the graph, employment of women in professional employment has had a steady increase over the years and by the last quarter of 2015, there were more women than men in professional employment and the number have been improving to date. According to StatsSA Data, the first quarter recorded a higher number of women employed in professional services compared to men.

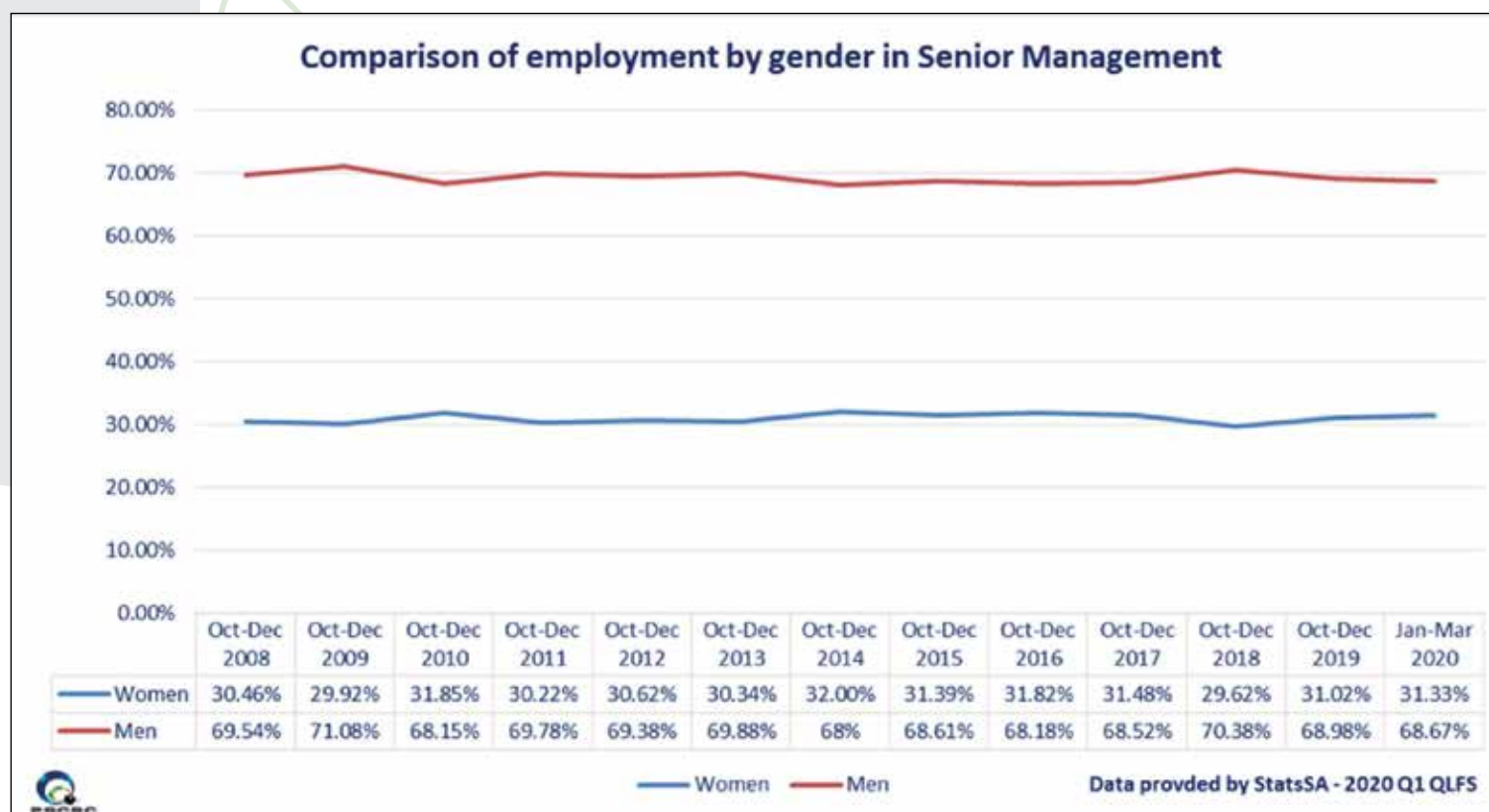


According to the Quarterly Labour Force Survey released by Statistics South Africa, women accounted for 43.7% of total employment in the first quarter of 2020 and only 31.3% of managers in South Africa were women.

Gender equality remains a major issue in the private sector. In reality, there is little change when it comes to having women in leadership positions. The following graph compares figures of

women managers in South Africa from the last quarter of 2008 to the first quarter of 2020 despite the women's population estimated at 51, 1% thus (approximately 30, 5 million).

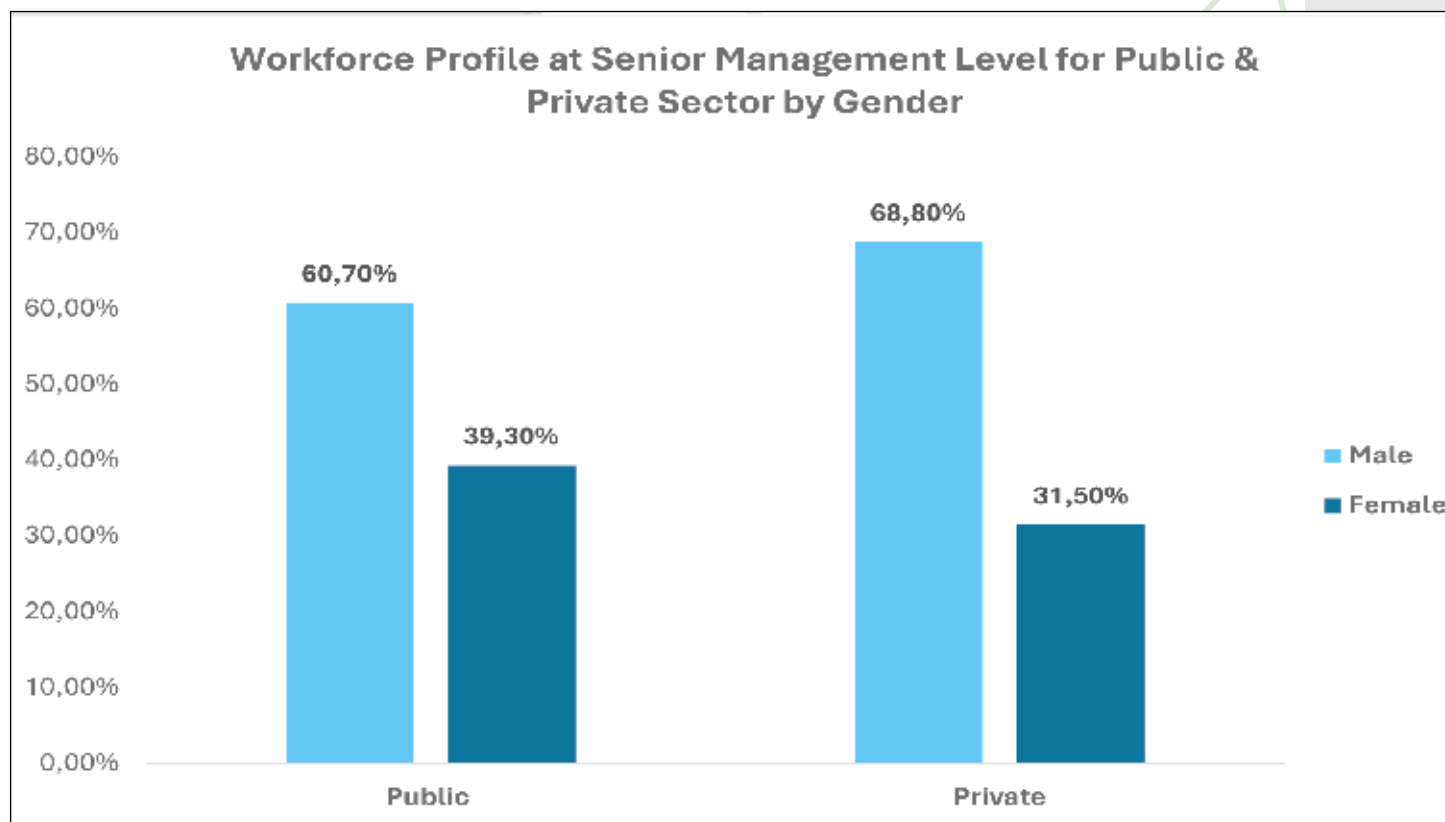
Given the breakdown on gender statistics in South Africa, the above information of women participation in labour shows that, women are still underrepresented in the labour force.



As of 2019 there were not a single female Chief Executive Officer (CEO) in the top 40 companies that are listed on the Johannesburg Stock Exchange (JSE) and outside of the top 40, only 3.31% of all companies on the JSE have female CEOs.

In the 30 years of labour relations, the pay disparities between men and women chief executives persist. The significant pay gaps were in the healthcare sector, (28.1percent), followed by consumer discretionary (25.1percent), technology (22.9percent) and financials (21.8percent)

There has been high concentration of males at the Senior Management level with 68.5% in the Private Sector and 60.7% in the Public Sector respectively. This is work in progress that should be continued in the seventh administration.



Despite the significant progress made in the 30 years of labour relations, in reducing gender gaps, there remains significant gender gaps in labour market outcomes. Women continue to strive to participate in the labour market as compared to men.

Gender wage gap

In the 30 years of labour relations, South Africa implemented gender equality and equity policies in the public service. Today South Africa is ranked 19th on the Global Gender Gap Index on

gender inequality showcasing progress made despite the decline in wage equality. This means that, although gender equality and women's empowerment interventions and policies as the primary focus in the South African labour force, the gender pay gap is still huge.

Good policies have been designed including the South African Constitution that embeds the right to equality, equal protection and benefit before the law, and to non-discrimination. Despite this, women have not advanced as rapidly in terms of

empowerment and gender equity. Women's unemployment rate was 32.4% in the first quarter of 2020 compared to the 28.3% among men. Although South Africa has made great strides in the last 30 years, gender representativity is still below the 50% mark in leadership positions despite the fact that male and females benefit equally in terms of labour peace.

30 years of labour relations have witnessed women only making up 47.39% of the formally employed and continue to encounter more obstacles to securing formal employment compared to men. However, women continue to support more households than men.

In the Public service, while the Management positions are still predominantly held by men, female representation has improved, especially in middle management. The percentage of women in middle management (MMS) positions rose from 45,2% in 2019 to 46,4% in 2023, while senior management (SMS) roles saw an increase from 42,4% to 45,2% over the same period.

The Public services have significantly made strides toward gender equality in politics, particularly in parliament, where female representation has grown since 2004. Women's representation in parliament increased from 33,0% in 2004 to 42,8% in 2024, while in the National Council of Provinces (NCOP), it rose from 41,0% to 44,4% over the same period. Although the cabinet achieved gender parity in 2019, female representation decreased to 43,8% in 2024.

As at March 2022, there were 9 291 filled SMS positions of which 4119 (44.3%) were filled by women and 5 172 (55.7%) were filled by men. At the end of the 2021/2022 financial year, the Public Service had 1053 more male Senior Managers than female Senior Managers (see figure 2). The number of women

at SMS increased between March 2021 and March 2022 by 11 from 4108 to 4119. The current number of women at SMS is still below the 50% employment equity target.

Persons with disabilities are mostly employed between levels 5 and 8 with a total number of 8172 (63.85%) which has increased by 91 from the end of March 2021. Between levels 9 and 10 they are 1703 (13.38%), levels 11 and 12 they are 606 (4.76%) and levels 13 to 15 they are 154 (1.21%). There was a decrease although not significant of the representation of persons with disabilities from levels 9 to 13 as compared to end March 2021.

The representation of persons with disabilities at decision-making level remains a challenge. The number of persons with disabilities at SMS level increased only by 7 employees from 148 as at end March 2021 to 155 by end March 2022. There was no increase in the number of males as at end March 2022 and females increased from 56 to 63 during the same period (DPSA Annual report 2022).

Conclusion

The 30 years of Labour relations have experienced shifts in policies to the favouring gender equality and gender equity. The 50/50 balance in cabinet and in the public sector have been a historical milestone in the South African political landscape. There has been an increase of women representation in the parliament from 40% in 2014 to 46% in 2019. The public service has adopted the gender equity agenda and put it in practice than, in the corporate world.



THE PSCBC'S STRUCTURED COLLECTIVE BARGAINING

7

Chapter 7

THE PSCBC'S STRUCTURED COLLECTIVE BARGAINING

Introduction

The establishment of the PSCBC addressed the fragmented system of collective bargaining of pre-1994. The PSCBC and sector councils established independent secretariats to carry out the functions of the Councils. This was to effectively implement the sector specific bargaining processes and dispute management. Resolution 3 of 2000: Establishment of Bargaining Councils: Parties to the PSCBC signed the agreement based on the LRA to designate bargaining councils including the establishment of the Education Labour Relations Council, Safety and Security Sectoral Bargaining Council, Public Health Social Development Sectoral Bargaining Council and the General Public Service Sectoral Bargaining Council.

The Secretariats established working relationship to ensure that all councils functioned efficiently and effectively. In celebrating the 30 years of labour relations it is important to reflect on how the PSCBC became the cornerstone of labour relations in the public service.

Wage negotiations



In the early years of the PSCBC (1998- 2000), salary negotiations were conducted annually, and were often protracted, with Council spending up to six months in negotiations. This deviated in 2001, when parties agreed to enter into multiterm agreements. Despite this, negotiations tended to drag on for months with the 2007 negotiations lasting nearly nine months.

The PSCBC coordinated wage negotiations year on year in the past 30 years concluding one agreement at a time. This entailed sleepless nights, of wage negotiations. Lessons have been learnt from each wage negotiation period, with some leading to industrial action. The process has been guided by Resolution 3 of 2017: Negotiation Protocol Agreement: Wage Negotiations Process. Parties evaluated the 2015 wage negotiations and committed to approach wage negotiations with a Joint Solution Seeking approach. Various wage negotiation resolutions were signed (Resolution 1 of 2018, Resolution 2 of 2024 Amendment to Resolution 3 of 2017 Negotiation Protocol Agreement Wage Negotiation Process, Resolution 1 of 2025).

Parties explored the manner in which they bargained and how the process could be improved and better managed in the future. In this regard, parties reflected on previous negotiation processes as well as adopting more innovative processes.

This led to council conducting effective interest-based negotiations and establishing a framework and timetable for each identified cycle of negotiations (PSCBC Resolution 2 of 2024. Relevant information relating to the economic indicators that become available from time to time, were shared.

The wage arbitration was adopted in respect of the unresolved dispute on behalf of members. This included members in

essential services opposed the request for the arbitration arguing that whilst a dispute existed it was not an essential services dispute.

30 years have seen, the establishment of the PSCBC as the beacon of hope and transformation. reflected a nation's collective effort to transform people's quality of life and labour peace. The 30 years of labour relations provided fruits of unified voices of the public servants, that the conditions of services and labour peace prevailed. The PSCBC became a national and regional institution that promoted and strengthened social dialogue in the workplace.

A key development in dispute resolution was the accreditation of the PSCBC and sector bargaining councils, laying the foundation for the implementation of dispute resolution procedures in accordance with the objectives of the Council's constitution and the LRA. Various dispute resolutions were signed for implementation. These included Resolution 11 of 1998: Full time shop stewards, the purpose of this agreement was to define guidelines for the appointment of full-time shop stewards, to optimise collective bargaining and dispute resolution in the public service.

PSCBC Resolution 10 and 12 of 1998: Designation of GPSSBC and SSSBC. SECTION 37 (1) of the Labour Relations Act, No. 66 Of 1995 (the LRA) enabled the (PSCBC) to designate a sector of the public service for the establishment of a bargaining council. This led to the establishment of GPSSBC and other sector councils.

To expedite the resolution of disputes, the PSCBC dispute resolution procedures made provision for a different approach than the norm. The initial procedures provided that for any

dispute, an arbitration hearing to be concluded within 30 days of the date the dispute was referred, followed by the conciliation hearing at least 14 days prior to the arbitration hearing. Both hearing dates were then displayed on the notice of hearings to the parties. This procedure was also adopted by the sector councils.



Various Public service summits coordinated by the PSCBC led to various resolutions that were agreed upon and implemented. The agreements provided for frameworks on transformation and restructuring of the public service (including processes and procedures to be followed at sectoral and departmental levels); labour relations policy in the public service; socio-economic policies for the public service and improving participation in the budgetary process. Various processes were set in motion to deal with the relationship between the collective bargaining and budgetary process and how to align these processes (PSCBC Resolution 2 of 2024).

Through the Job Summit and Misty Hills interventions, parties signed the multi-year agreement in the public service. The three-year wage deal laid the basis for subsequent negotiations around the restructuring and transformation of the public service but also gave impetus to look at macro benefits and speed up the processes around restructuring.

A number of restructuring processes took place in the 30 years (Resolution 1 of 2019). As part of this process of restructuring, the PSCBC entered into a collective agreement to disestablish the provincial bargaining councils and gave birth to provincial co-ordinating bargaining chambers as sub-chambers of the PSCBC.

This led the parties to agree on a constitutional amendment to increase the threshold for union admission to the Council to 50 000 which is equivalent to 5% of the public service. The increase in the threshold reduced the number of unions admitted to the PSCBC to eight (PSCBC Resolution 11 of 2002 stipulates that a trade union must meet a membership threshold of 50,000 members to be admitted as a party to the Council).

The PSCBC and its constituents drew lessons from the collective bargaining and dispute management. The PSCBC Council led to the establishment of restructuring of the medical aid benefit and the registration by government of the new Government Employee Medical Scheme (GEMS). GEMS grew in the past 30 years of labour relations to 820 000 members in 2025.

The 30 years of labour relations made macro-benefits accessible to all public service employees. A housing allowance was extended to all, the board of trustees of the government employees' pension fund (GEPPF) was reviewed.

The (PSCBC) has remained an integral part of the politics of the country as negotiations in the Council continues. Alliance politics and broader state societal politics play itself out in the Council. The 30 years legacy of labour relations, in the Public Service have been progressive through the PSCBC ensuring the protection of workers' rights. The 30 years have seen the PSCBC maturing into a responsible Council, well capable of contributing to effective collective bargaining, and addressing the rising challenges.

The PSCBC has created a platform for stakeholders to build relationships, through social dialogue in the public service. This has in turn created space for a new approach to the management of the public service. It created structures at various levels of council to engage at national and provincial levels. It developed systems for collective bargaining, dispute resolution and joint decision making. The PSCBC introduced a new system of employee relations in the public service through progressive grievance and disciplinary procedures.

A single public service: The creation of a seamless public service delivery model

has been on the pipeline and reiterated in the Public service through Resolution 1 of 2022 public service Declaration Summit. The process requires the integration of local government and public entities into the provincial and national spheres of government. The alignment of the three spheres of government will necessitate stakeholder engagement processes and risk management. This will impact on the scope of the PSCBC requiring strategic redefinition of the scopes of the other sectors.

Centralised bargaining: Collective bargaining remains highly centralised, with sectoral and provincial bargaining structures having limited jurisdiction to negotiate substantial pay or conditions of service issues. The PSCBC Constitution provides for a single public service. Although the 1997 amendments to the Public Service Act gave Ministers and MECs greater powers over work organisation and other aspects of human resource management, these have not affected the level at which bargaining takes place.

Co-ordination: The formation of sector councils brought designation of roles and responsibilities of councils. Sector councils have matured and established their own identity, co-ordination. The impact of separate identities and non-alignment is probably the clearest if one recognizes that there are 5 different sets of dispute resolution procedures and 3 different set of dispute resolution rules between the 5 public service bargaining councils. The co-ordination role of the PSCBC needs to be adapted to the changing environment. Its co-ordination role needs to remain whilst taking due cognisance of the independence of the sectors.

Collective bargaining and budgetary process: A key area of concern for labour regarding salary negotiations has been that bargaining takes place after government has determined the budget through its own budgetary processes. A principled agreement, arising from the Job Summit Framework Agreement, was reached to synchronise the collective bargaining process to government's budgetary processes. This has been addressed through the PSCBC Resolution 2 of 2024 led to the development of wage negotiations cycle that have to align with the government budgetary process.



Enforcement and implementation of agreements: The importance and need to enforce collective agreements concluded in the PSCBC has been recognized and highlighted in the LRA, as well as in the PSCBC Constitution as one of its objectives and functions. The PSCBC has enforced implementation of collective agreements via the dispute procedure for interpretation and/or application of collective agreement disputes. This has been implemented through Resolution 3 of 2023. Through monitoring the implementation of collective agreements, the PSCBC has tracked all agreements and how the employer through directives implemented most of the collective agreements.

Capacity of parties to bargain: While in the first 10 years of labour relations in the PSCBC was affected by lack of capacity of negotiators, it can be evidently proclaimed that this is no longer the case as more negotiators have been capacitated through the PSCBC for both parties to council 20 years later.

Conclusion

The 30 years of labour relations have seen sacrifices in labour relations in the public service. Part of the sacrifices to achieve better working conditions and improve service delivery or production, labour and employer made concessions in the PSCBC. The last part of the 30 years of labour relations have seen the adoption of the new bargaining model in the PSCBC of a give-and-take approach which paved way for the implementation of a win-win situation moving away from a positional bargaining model where unions submit their demands and employers make a counteroffer that sometimes takes longer for the parties to reach an agreement. Parties to councils continue to fulfil their mandates to formulate solutions through effective social dialogue and collective bargaining.



LABOUR
RELATIONS IN
THE SEVENTH
ADMINISTRATION
AND BEYOND

8

Chapter 8

LABOUR RELATIONS IN THE SEVENTH ADMINISTRATION AND BEYOND

Concluding remarks

The ANC has protected and promoted workers' rights: The ANC government established the South African constitution to give workers the right to form and join unions, to strike and picket, to conclude union security agreements such as closed shop and agency shop, the right to collective bargaining. These constitutionally guaranteed rights have been protected in the past 30 years to give rights to workers.

Through the Labour Relations Act unfair dismissals and victimisation have been stopped. The CCMA was then established to settle disputes and to hear cases involving unfair dismissals. In the past 30 years, the CCMA has regulated the right to strike and promoted centralised bargaining. This has helped the majority of workers who used to have no strength to bargain and force settlements on employers.

The Basic Conditions of Employment Act gave all workers decent minimum conditions of service. This included leave, reasonable hours of work and overtime pay. The BCEA, set minimum wages for the workers that faced the harshest conditions, including domestic and farm workers. The 30 years of labour relations have seen laws such as the National Skills Development Act enabling all employers get involved in human resource training. It supported recognition of workers' existing

skills gained and gave unions a voice in training plans in workplaces and industries.

The Employment Equity Act has enabled equality in workplaces through the redress of the inequalities of the past. While we celebrate the 30 years of democracy, the lesson has been that, more still needs to be done to promote representation of black and women workers in more senior and better paying positions.

The health and safety laws have been consolidated and gave workers many rights, including but not limited to, the right to form workplace committees to ensure health and safety, the right to compensation for job-related injuries and diseases, and the right to refuse doing dangerous work. Suffice to appreciate the 30 years of democracy and achievements made in labour relation compared to overcoming 300 years of colonialism and apartheid in three decades.

The 30 years of labour relations have been haunted by global economic crisis and other socio-economic factors that forced the South African government to apply constraint measures led to job losses and fewer jobs created. The unions have disagreed with some of the government economic policies and campaigned against privatisation of basic services. However, the policy agreements outweighed the disagreements.



South Africa has made significant strides since achieving freedom 30 years ago. The human rights-driven constitutional dispensation has to be acknowledged. This has translated into sound governance and impactful programmes that improve citizens' lives.

Despite our many successes since 1994 we are not immune to the challenges faced in the workplace and globally. The country grappled with economic hardships due to rapidly changing geopolitical landscape and armed conflicts across the globe. Despite these setbacks, South Africa remained resolute to finding long-term solutions and securing a brighter future for future generations and improved labour relations.

The 30 years of labour relations have proved to inspire hope for a better tomorrow valuing the people, and strive for equal opportunities, prosperity and individual dignity. The zero tolerance for discrimination, sexism, racism, and state-sponsored violence, is a societal norm at home and at the workplace.

The 30 years of democratic governance dismantled the foundation that was laid 300 years ago and have been a reminder of the monumental strides made towards justice and equality, driven by the resilience and tenacity of workers and trade unions. Since the advent of democracy in 1994, Parliament has been instrumental in transforming the legislative landscape to better serve our workers and protect their rights.

The important labour laws were not merely regulatory but bold declarations of the country's commitment to align South Africa's labour laws with the Constitution and international labour relations standards. This has led to workers enjoying the right to organise, join trade unions, and strike, ensuring that trade union representatives have access to workplaces. This also set the

framework for collective bargaining and establishment of bargaining councils, which have been crucial for mediating labour disputes and enhancing workplace relations. The critical questions are how the seventh administration will continue to develop policies that promote labour peace and the creation of conducive working environments in the workplace in the public and private sector. With the government of National Unity, the hope is continuity in the same trajectory of strengthening workers' rights.

South Africa has made significant strides since achieving freedom 30 years ago. The human rights-driven constitutional dispensation have to be acknowledged. This has translated into sound governance and impactful programmes that improve citizens' lives.

Despite our many successes since 1994 we are not immune to the challenges faced in the workplace and globally. The country grappled with economic hardships due to rapidly changing geopolitical landscape and armed conflicts across the globe. Despite these setbacks, South Africa remained resolute to finding long-term solutions and securing a brighter future for future generations and improved labour relations.

The 30 years of Labour relations have seen the PSCBC emerging as one of the most prominent public service coordinating institutions. Its role in coordinating collective bargaining and dispute management in the public services cannot be reemphasized. It has remained relevant, effective and a role model on social dialogue, social partnerships and collaboration.

The PSCBC has been a vehicle for the transformation and restructuring process in the public service, reaching significant

collective agreements from 1998 to 2025. It can be celebrated that the public service have achieved a milestone in labour relations through the PSCBC and parties to council. It has addressed the profound inequities inherited from the past, meeting the moral, social and economic demands of our developmental state.

The PSCBC has transformed labour relations in the public service and become a best model locally, regionally and internationally. Parties (labour and employer) have remained committed to the PSCBC in the past 30 years and through this commitment the institution has been able to pave the way for the transformation of the Public Service, whether it be through negotiation, consultation or dialogue between the social partners.

The 30 years have seen the PSCBC creating a system of bargaining and engagement in the Public Service, at national and provincial level (chambers). This system facilitated regular dialogue between the employer and employees through their membership with admitted trade unions in the public service over pertinent human resources and service delivery issues. The PSCBC tackled **head-on** the agenda of transformation and restructuring the public service to improve government's service delivery imperatives.

Renegotiating and restructuring macro benefits have been critical in achieving equity and parity in the public service over the 30 years of labour relations. This include but not limited to the process of removing discriminatory practices in the government's pension fund.

The PSCBC addressed various challenges head on by laying the foundation of a culture of engagement and dialogue between the parties to council. The 30 years of labour relations have

strengthened the freedom of association in the public service through the PSCBC. The vast majority of the 1.2 million public servants are unionised. This was made possible through the PSCBC Resolution 1 of 2005, also known as the "Agency Shop Agreement". This resolution specifies the process and details of deducting a fee from the salaries of non-member public servants, ensuring they contribute to the costs of collective bargaining. In the 30 years of labour relations the PSCBC facilitated the maturing of the relationship between the parties to council (Labour and employer) through the establishment of formal structures for collective bargaining, effective dispute resolution procedures and various collective agreements.

The process of public service transformation has been on the agenda in the 30 years. Establishing a single public service has been a Resolution 1 of 2022 of the public service summit and committees were established to spearhead the implementation of the resolution. '**Aluta continua**'.

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